

**CHAPTER xlii.**

An Act to consolidate with amendments the Acts relating to the port and harbours of Greenock to reconstitute and reincorporate the Trustees to authorise the construction of new works to provide for the adjustment of the finances of the trust to provide for a guarantee by the Corporation of Greenock and for other purposes. A.D. 1913.
[15th August 1913.]

WHEREAS by the Greenock Port and Harbours Act 1866 (herein-after called "the Act of 1866") certain Acts relating to the port and harbours of Greenock were repealed with the exceptions mentioned in that Act and were consolidated with amendments and the trustees of the port and harbours of Greenock were incorporated and the undertaking as therein set forth of the then existing trustees was transferred to and vested in the trustees so incorporated: 29 & 30 Vict.
c. clvi.

And whereas by the Greenock Harbour Order 1864 confirmed by the Pier and Harbour Orders Confirmation Act 1864 the Greenock Port and Harbours Act 1867 (herein-after called "the Act of 1867") the Greenock Harbour Order 1868 confirmed by the Pier and Harbour Orders Confirmation Act 1868 (No. 2) the Greenock Harbour Act 1872 (herein-after called "the Act of 1872") the Greenock Harbour Act 1880 (herein-after called "the Act of 1880") the Greenock Harbour Order 1882 confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1882 the Greenock Harbour Act 1884 (herein-after called "the Act of 1884") the Greenock Harbour Order 1887 confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1887 further powers with reference to the port and harbours of Greenock 30 Vict.
c. xxxv.
35 & 36 Vict.
c. lxxi.
43 & 44 Vict.
c. clxx.
47 Vict.
c. xvi.
50 & 51 Vict.
c. lxxiv.

A.D. 1913. (herein-after called "the port and harbours") were conferred on the trustees incorporated by the Act of 1866:

51 & 52 Vict.
c. cxiii.

And whereas by the Greenock Harbour Act 1888 (herein-after called "the Act of 1888") the constitution of the trustees incorporated by the Act of 1866 was altered and further powers with reference to the financial affairs of the trust were conferred on the trustees so reconstituted (herein-after called "the existing trustees"):

58 & 59 Vict.
c. cv.

And whereas by the Greenock Harbour Act 1895 (herein-after called "the Act of 1895") further powers with reference to the port and harbours were conferred on the existing trustees:

And whereas the trustees incorporated by the Act of 1866 and the existing trustees have under the powers of the said recited Acts from time to time constructed new harbours and a graving dock and other works in and connected with the port and harbours for the accommodation of the trade and shipping thereat:

And whereas at the passing of the Act of 1866 the amount of the port and harbours debt outstanding was three hundred and fifty-six thousand and sixty-three pounds two shillings and threepence and the sum of three thousand nine hundred and thirty-six pounds seventeen shillings and ninepence was the amount of the then unexercised borrowing powers for the purposes of the port and harbours and by the Act of 1866 the trustees incorporated by that Act were authorised to borrow for the purposes of the port and harbours any sums of money which together with any sums previously borrowed should not exceed the sum of six hundred and fifty thousand pounds:

And whereas the trustees incorporated by the Act of 1866 were authorised by the Act of 1867 to borrow any sum which together with the sums borrowed under the Act of 1866 should not exceed seven hundred and fifty thousand pounds and by the Act of 1872 any sum which together with the amount borrowed and not repaid before the passing of the Act of 1872 should not exceed one million pounds and by the Act of 1880 any sum which together with the amount authorised to be borrowed before the passing of the Act of 1880 should not exceed one million three hundred thousand pounds and by the Act of 1884 any sum which together with the amount authorised to be borrowed before the passing of the Act of 1884 should not exceed one million eight hundred thousand pounds:

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And whereas the trustees incorporated by the Act of 1866 and the existing trustees from time to time borrowed a part of the money so authorised to be borrowed by the Acts of 1866 1867 1872 1880 and 1884 amounting to the sum of one million five hundred and thirty-three thousand three hundred and sixty-one pounds six shillings and eightpence :

And whereas prior to the passing of the Act of 1888 the trustees incorporated by the Act of 1866 had defaulted in payment of capital sums and interest thereon due by them :

And whereas by the Act of 1888 the existing trustees were authorised in lieu of the then existing harbour securities and for the purposes of the port and harbours to which capital was properly applicable to create and issue "A" debenture stock to such an amount as would produce four hundred and fifty thousand pounds and "B" debenture stock to an amount not exceeding one million three hundred and fifty thousand pounds and the said harbour securities were cancelled and extinguished :

And whereas since the passing of the Act of 1888 the existing trustees have created and issued "A" debenture stock to the extent of three hundred and ninety-eight thousand two hundred and forty-five pounds four shillings and "B" debenture stock to the extent of one million one hundred and two thousand six hundred and eighty-seven pounds nineteen shillings and elevenpence :

And whereas since the passing of the Act of 1888 the rates and revenues of the port and harbours have been and are insufficient to pay the interest due to the holders of the said "B" debenture stock :

And whereas by the Act of 1895 it was provided that in the event of the existing trustees failing at any time to make payment of the interest due at the expiry of any half year it should be lawful after the expiration of a period of ten years from the passing of the said Act for any holder of the said "B" debenture stock to apply to the sheriff of Renfrew and Bute or his substitute at Greenock for the appointment of a judicial factor :

And whereas in accordance with the provisions of the Act of 1895 the sheriff substitute at Greenock on the fifth day of

A.D. 1913. August one thousand nine hundred and five upon the application of certain holders of the said "B" debenture stock appointed Andrew Carmichael shipowner Greenock as judicial factor "to receive the whole or a competent part of the rates and duties and other revenues of the Greenock Harbour Trust until all the arrears of interest or of principal as the case may be due to the holders of the "B" debenture stock be fully paid":

And whereas the arrears of interest due on the said "B" debenture stock amounted on the eleventh day of November one thousand nine hundred and twelve to the sum of six hundred and twenty-three thousand two hundred and fifty-nine pounds four shillings and tenpence and the rates and revenues of the existing trustees are wholly inadequate for paying off the said sum or any part thereof and it is expedient that the said arrears and any further sum which may have accrued up to the commencement of this Act should be cancelled and extinguished and other arrangements made in lieu thereof as herein-after provided:

And whereas it is expedient that the said "B" debenture stock should from and after the passing of this Act consist of two portions to be called respectively "B" preferred debenture stock and "B" deferred debenture stock and that the provisions herein-after contained in that behalf should have effect:

And whereas it is expedient that the office of the judicial factor should be terminated and that he should be discharged as herein-after provided:

And whereas since the passing of the Act of 1888 the constitution of the existing trustees has remained unaltered and it is expedient that the constitution of the existing trustees should be amended and altered and the trustees reincorporated as herein-after in this Act provided and that the undertaking of the existing trustees should be transferred to and vested in the trustees so reincorporated (herein-after called "the Trustees"):

And whereas it is expedient that the qualification of the electors and of the shipowners and ratepayers Trustees to be elected under this Act should be extended and that the further powers in this Act contained in relation thereto should be conferred on the Trustees:

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And whereas it is expedient to authorise the Trustees to construct new works and effect further improvements for the benefit of the trade and shipping at the port and harbours and to borrow money for those purposes and for the purposes of this Act:

And whereas in order to facilitate the raising of the money required for the purposes aforesaid it is expedient that the corporation of Greenock should grant the guarantee and be authorised to levy the guarantee rate as by this Act provided:

And whereas it is expedient that the rates at present leviable at the port and harbours should be revised and that new and additional rates for the purposes of the port and harbours should be imposed as by this Act provided:

And whereas it is expedient that the Trustees should be authorised to set apart annually a sum of money for the purpose of creating a reserve fund in accordance with the provisions herein-after contained:

And whereas many of the provisions of the recited Acts and Orders have been superseded by subsequent legislation and ought to be repealed and it would be of public advantage if the provisions of the said Acts and Orders so far as it is expedient to retain them were consolidated with certain amendments and additions into one Act:

And whereas it is expedient that the further powers contained in this Act should be conferred on the Trustees:

And whereas plans and sections showing the lines situation and levels of the works authorised by this Act and the lands and property proposed to be acquired for the purposes thereof and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and property which may be taken under the powers of this Act were duly deposited with the principal sheriff-clerk for the county of Renfrew and are hereafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

A.D. 1913. and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

INCORPORATION OF GENERAL ACTS AND GENERAL
ENACTMENTS.

Division of
Act into
Parts.

1. This Act is divided into Parts as follows:—

Part I.—Incorporation of General Acts and General Enactments.

Part II.—Reconstitution and Incorporation and Elections and Meetings of Trustees &c.

Part III.—Transfer of Port and Harbours and Property to the Trustees and continuance of Existing Rights.

Part IV.—Accounts and Audit thereof.

Part V.—Works.

Part VI.—Transit Sheds and Warehouses &c.

Part VII.—Limits of Port and Harbours Maintenance of Works &c.

Part VIII.—Rates at the Port and Harbours.

Part IX.—Financial.

Part X.—Byelaws and Regulations.

Part XI.—Police.

Part XII.—Miscellaneous.

Short title
and com-
mencement.

2. This Act may be cited for all purposes as the Greenock Port and Harbours Consolidation Act 1913 and shall commence and have effect from and after the date of the passing of this Act which date is herein-after referred to as “the commencement of this Act.”

Repeal of
Harbour
Acts.

3. From and after the commencement of this Act the Acts and Orders specified in Part I. of Schedule A to this Act annexed so far as such Acts and Orders are unrepealed at the commencement of this Act shall be and the same are hereby repealed to the extent mentioned in the third column of that schedule and the section of the Act of 1866 mentioned in Part II. of the said schedule as excepted from repeal shall have and continue to have the same effect as if this Act had not been passed.

Incorporation of
provisions of
Lands Clauses
Acts.

4. The Lands Clauses Acts are incorporated with this Act.

5. The Commissioners Clauses Act 1847 is incorporated with this Act excepting the sections thereof with respect to the following matters (that is to say) the qualification of commissioners where commissioners are to be elected by the ratepayers or other like class of electors the meetings and other proceedings of commissioners and their liabilities and also with the exception of sections 57 92 93 and 94 and in construing the said Act as incorporated with this Act the expression "the commissioners" shall mean the Trustees and the expression "the special Act" shall mean this Act and the expression "mortgage or assignation in security" shall mean and include any bond or other security or voucher of debt to be granted by the Trustees.

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 Incorpora-
 tion of pro-
 visions of
 Commis-
 sioners
 Clauses Act.

6. The Harbours Docks and Piers Clauses Act 1847 is incorporated with this Act excepting sections 16 to 19 inclusive (unless the Trustees shall be required by the Board of Trade to provide and maintain a lifeboat and a tide and weather gauge) and excepting sections 25 and 26 and sections 77 to 80 inclusive and in construing the said Act as incorporated with this Act the expression "the harbour dock or pier" shall mean the port and harbours of Greenock as in this Act defined and the expression "the undertakers" shall mean the Trustees and the expression "the special Act" shall mean this Act and the following expressions shall have the following respective meanings (that is to say):—

Incorporation of provisions of Harbours Clauses Act.

The expressions "packet boat" and "Post Office packet" mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression "Post Office bag of letters" means a mail bag as defined by the same Act Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Act contained shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

7. The provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and other interference therewith are incorporated with this Act.

Incorporation of provisions of Railways Clauses Act.

8. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly

Interpretation.

A.D. 1913. or partially incorporated herewith have the same respective meanings and the following words and expressions have the meanings hereby assigned to them:—

“The existing trustees” means the trustees of the port and harbours of Greenock appointed under the Act of 1888 and acting under the Harbour Acts;

“The Trustees” means the Trustees of the port and harbours of Greenock acting for the time being in the execution of this Act;

“The clerk” and “the collector” and “the harbour-master” mean the clerk and the collector and the harbour-master for the time being of the existing trustees or of the Trustees;

“The superintendent” means the superintendent of transit sheds and warehouses appointed by the existing trustees or by the Trustees and shall in his absence include the interim superintendent;

“The port and harbours” means and includes the port and harbours of Greenock together with all tidal harbours docks locks works yards lands property houses streets roads ways jetties wharves piers quays warehouses sheds slipways harbour rails and premises whatsoever for the time being belonging to the existing trustees and the Trustees and the whole harbour undertaking of the existing trustees and the Trustees;

“The burgh” means the burgh of Greenock;

“The corporation” means the provost magistrates and councillors of the burgh;

“The sheriff” means the sheriff of Renfrew and Bute or any of his substitutes at Greenock;

“The Order of 1864” means the Greenock Harbour Order 1864 confirmed by the Pier and Harbour Orders Confirmation Act 1864;

“The Act of 1866” means the Greenock Port and Harbours Act 1866;

“The Act of 1867” means the Greenock Port and Harbours Act 1867;

“The Order of 1868” means the Greenock Harbour Order 1868 confirmed by the Pier and Harbour Orders Confirmation Act 1868 (No. 2);

“The Act of 1872” means the Greenock Harbour Act A.D. 1913.
1872;

“The Act of 1880” means the Greenock Harbour Act
1880;

“The Order of 1882” means the Greenock Harbour Order
1882 confirmed by the Pier and Harbour Orders Con-
firmation (No. 2) Act 1882;

“The Act of 1884” means the Greenock Harbour Act
1884;

“The Order of 1887” means the Greenock Harbour Order
1887 confirmed by the Pier and Harbour Orders Con-
firmation (No. 1) Act 1887;

“The Act of 1888” means the Greenock Harbour Act
1888;

“The Act of 1895” means the Greenock Harbour Act
1895;

“The Harbour Acts” means and includes the Order of
1864 the Act of 1866 the Act of 1867 the Order of
1868 the Act of 1872 the Act of 1880 the Order of
1882 the Act of 1884 the Order of 1887 the Act of
1888 and the Act of 1895;

“Shipowner” or “shipowners” means and includes ship-
owners qualified and registered in accordance with the
provisions of this Act;

“Ratepayer” or “ratepayers” means and includes the
ratepayers of the port and harbours qualified and
registered in accordance with the provisions of this
Act;

“The harbour securities” means the various mortgages
assignments certificates of funded debt and other
securities granted by the trustees incorporated by the
Act of 1866 in connexion with the port and harbours
under the Acts relating to the port and harbours passed
prior to the Act of 1888;

“The ‘A’ debenture stock” means the “A” debenture
stock created and issued under the Act of 1888 and
outstanding at the commencement of this Act;

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"The 'B' debenture stock" means the "B" debenture stock created and issued under the Act of 1888 and outstanding at the commencement of this Act;

"The 'B' preferred debenture stock" means the portion of the "B" debenture stock allocated to the holders thereof under the name of "B" preferred debenture stock in accordance with the provisions of this Act;

"The 'B' deferred debenture stock" means the portion of the "B" debenture stock allocated to the holders thereof under the name of "B" deferred debenture stock in accordance with the provisions of this Act;

"The harbour stocks" means the "A" debenture stock the "B" preferred debenture stock and the "B" deferred debenture stock;

"Stockholder" or "stockholders" means and includes the holders of the harbour stocks;

"The river" means the river or firth of Clyde;

"The appointed day" means the eighteenth day of November one thousand nine hundred and thirteen.

PART II.

RECONSTITUTION AND INCORPORATION AND ELECTIONS AND MEETINGS OF TRUSTEES &C.

Alteration of
constitution
of existing
trustees.

9. On and after the appointed day the power and duty of carrying into effect the provisions of this Act shall be vested in and be performed by the Trustees appointed and elected under this Act who shall be substituted for the existing trustees and the Trustees to be appointed and elected under this Act shall be appointed and elected in the manner provided by this Act and the Trustees and their successors in office shall be and are hereby constituted a body corporate under the name of "The Trustees of the Port and Harbours of Greenock" with perpetual succession and a common seal and shall have power to sue and be sued and to acquire hold use and dispose of lands and other property for the purposes of this Act and shall have all other privileges of a body corporate and all deeds and other instruments to be made and granted by the Trustees shall be valid and effectual if subscribed by any three of their number and by the clerk and sealed with their common seal.

10. From and after the appointed day the Trustees shall be seventeen in number and shall be the persons herein-after specified (that is to say):—

A.D. 1913.
Constitution
of Trustees.

One shall be the chairman of the Trustees to be appointed in accordance with the provisions of the section of this Act the marginal note of which is "Appointment of chairman of Trustees";

Five shall be members of the corporation elected by the corporation in accordance with the provisions of this Act and shall be called "corporation Trustees";

Five shall be elected by the shipowners and ratepayers in accordance with the provisions of this Act and shall be called "shipowners and ratepayers Trustees"; and

Six shall be elected by the stockholders in accordance with the provisions of this Act and shall be called "stockholders Trustees."

11. From and after the commencement of this Act and until the appointed day the power and duty of carrying into effect the provisions of this Act shall be vested in and performed by the existing trustees in office immediately previous to the commencement of this Act who for such period shall be the Trustees with all the property duties powers rights and privileges vested in and conferred on the Trustees by this Act.

Existing
trustees to
act in first
instance.

12. The corporation shall at their annual meeting in the month of November one thousand nine hundred and thirteen and in the month of November in every third year thereafter elect five of their number to be corporation Trustees and the corporation Trustees so first elected shall come into office on the third Tuesday of November one thousand nine hundred and thirteen and shall remain in office until the third Tuesday of November one thousand nine hundred and sixteen when the corporation Trustees elected in their room shall come into office and so on in every third year thereafter.

Election of
corporation
Trustees.

If any one of the corporation Trustees die or resign or be disqualified as a member of the corporation or cease to be a member of the corporation the corporation shall within one month from the happening of such vacancy elect one of their number in his place and the corporation Trustee so elected shall continue in office for the same period as the corporation Trustee whose office has become vacant Provided always that

A.D. 1913. a corporation. Trustee ceasing to be a member of the corporation shall nevertheless remain in office until the election by the corporation of his successor.

Election of
Trustees by
shipowners
and rate-
payers.

13. The five persons to be elected shipowners and ratepayers Trustees shall be elected by and from the shipowners and ratepayers registered as electors as herein-after provided (herein-after called "the electors") and the election of such Trustees shall take place between the first and tenth days inclusive of November one thousand nine hundred and thirteen and between the first and tenth days inclusive of November in every third year thereafter and the shipowners and ratepayers Trustees first elected shall come into office on the third Tuesday of November one thousand nine hundred and thirteen and shall remain in office until the third Tuesday of November one thousand nine hundred and sixteen when the shipowners and ratepayers Trustees elected in their room shall come into office and so on in every third year thereafter.

Qualification
of ship-
owners and
ratepayers
for electing
and being
elected
Trustees.

14. Any person residing within the burgh or within seven miles of some part thereof or having his place of business within the burgh whose name shall on the first day of September one thousand nine hundred and thirteen with respect to the first election of shipowners and ratepayers Trustees under this Act and on the first day of September in every third year thereafter with respect to subsequent elections of shipowners and ratepayers Trustees appear in the books of the Custom House of Greenock as owner or part owner to the extent of at least one hundred tons of or in any vessel or vessels registered at the port of Greenock and any person residing within the burgh or within seven miles of some part thereof or having his place of business within the burgh who shall during the year ending on the first day of September one thousand nine hundred and thirteen with respect to the first election of shipowners and ratepayers Trustees under this Act and on the first day of September in every third year thereafter with respect to subsequent elections of shipowners and ratepayers Trustees have paid as principal either directly or indirectly or as agent for any person residing beyond the burgh five pounds or upwards of rates leviable under the Harbour Acts or under Schedules E F G and H or any of them to this Act annexed shall be qualified to be an elector and to be elected a shipowners and ratepayers

Trustee and shall be entitled to be registered as herein-after A.D. 1913.
provided.

15. Where any person or persons (being the representatives of any joint owners firm company or corporation residing or having a place of business within the burgh) and any two or more persons jointly residing within the burgh or within seven miles of some part thereof or having a place of business within the burgh or any company firm or corporation having a place of business within the burgh appear in the books of the Custom House aforesaid as owners to the extent of at least one hundred tons or the equivalent thereof of or in any vessel or vessels registered at the port of Greenock such person or persons firm company or corporation may intimate in writing to the Trustees on or before the thirtieth day of September next preceding the election the name or names of any one or more (not exceeding five in number in respect of any one body of joint owners or any one firm company or corporation) of the owners managing owners or managers of any such vessel or vessels or of the partners or members or of the managers or secretaries of any such firm company or corporation whom they desire to qualify as electors and as shipowners and ratepayers Trustees in respect of the ownership of such vessel or vessels and each such owner partner member managing owner manager or secretary so named shall be entitled to be registered as herein-after provided and shall be qualified to be an elector and a shipowners and ratepayers Trustee provided that the amount of tonnage held by such owners firm company or corporation be sufficient to afford the qualification of at least one hundred tons or the equivalent thereof of or in such vessel or vessels to each of the owners partners members managing owners managers or secretaries so named and a written intimation to the Trustees of the name or names of the owner or owners of any such vessel or vessels under the hands of the person or persons in whose name or names the said vessel or vessels is or are registered in the books of the Custom House aforesaid or under the hands of the managing owner or manager of any such vessel or vessels shall be sufficient evidence of the ownership of such vessel or vessels and the person or each of the persons so named in such intimation shall be qualified to be an elector and a shipowners and ratepayers Trustee and shall be entitled to be registered as aforesaid in the same manner as if his or

Partners of
a company
qualified as
shipowners.

A.D. 1913. their name or names had appeared in the books of the Custom House aforesaid as owner or owners of any such vessel or vessels.

In this section the expression "the equivalent thereof" means such a share or interest of or in a vessel or vessels registered at the port of Greenock as would in tonnage be equal to at least one hundred tons.

Partners of
a company
qualified as
ratepayers.

16. Where any of the rates leviable under Schedules E F G and H to this Act annexed shall be paid by any company consisting of two or more partners having a place of business within the burgh or within seven miles of some part thereof such company may on or before the thirtieth day of September next preceding the election intimate in writing to the Trustees the name or names of any one or more of the partners (not exceeding five in number) on whose behalf such payment has been made and such payment shall be deemed to have been made by the partner or partners so named and each such partner shall be entitled to be registered as herein-after provided and shall be qualified to be an elector and a shipowners and ratepayers Trustee in the same manner as if such payment had been made by him as an individual provided the amount of rates paid by such company is sufficient to afford the qualification of five pounds to the partner or each of the partners so named.

Persons
appointed
by incorpo-
rated com-
pany quali-
fied as
ratepayers.

17. Where any of the rates leviable under Schedules E F G and H to this Act annexed shall be paid by an incorporated company having a place of business within the burgh or within seven miles of some part thereof such company may through their secretary or other officer on or before the thirtieth day of September next preceding the election intimate in writing to the Trustees the name or names of the person or persons (not exceeding five in number and all of whom shall be members of such incorporated company) on whose behalf such payment has been made and such payment shall be deemed to have been made by the person or persons so named and each such person shall be entitled to be registered as herein-after provided and shall be qualified to be an elector and a shipowners and ratepayers Trustee in the same manner as if such payment had been made by him as an individual provided the amount of rates paid by such company is sufficient to afford the qualification of five pounds to the person or each of the persons so named.

18. The Trustees shall on or before the tenth day of September one thousand nine hundred and thirteen and on or before the tenth day of September in every third year thereafter apply to the Registrar of Shipping at the Custom House Greenock for a list of shipowners registered on the first day of September preceding with the respective names and tonnage of the vessels in respect of which they are registered and the number of shares in each such vessels held by them and such registrar shall within fourteen days after receiving such application as aforesaid supply such list on payment of any expense which may be incurred in making up the same and on or before the first day of October one thousand nine hundred and thirteen and on or before the first day of October in every third year thereafter the Trustees shall cause to be made up from the said list a list of the shipowners entitled under the provisions of this Act to elect or to be elected shipowners and ratepayers Trustees and shall also cause to be made up from the book or books kept by them a list of ratepayers entitled to elect or to be elected shipowners and ratepayers Trustees under the provisions of this Act and the clerk shall on or before the fifteenth day of October one thousand nine hundred and thirteen and on or before the fifteenth day of October in every third year thereafter certify the said two last-mentioned lists and cause a printed copy thereof to be exhibited until the twenty-eighth day of October at or within the office of the Trustees and shall give notice that such lists are or will be so exhibited by advertisement in at least one newspaper published in the burgh and shall give to any applicant therefor a copy of such lists without charge and any person conceiving himself entitled to be an elector or qualified to be elected a shipowners and ratepayers Trustee whose name shall have been omitted from either of the said lists may on or before the first day of November one thousand nine hundred and thirteen and on or before the first day of November in every third year thereafter apply to the sheriff who shall thereupon if he see fit cause the name of such shipowner or ratepayer to be added to the list and the said lists with the additions so made shall be deemed to be the register of electors and persons qualified to be elected shipowners and ratepayers Trustees under the provisions of this Act.

A.D. 1913.
Trustees to
make up
register of
shipowners
and rate-
payers.

19. To enable the Trustees to prepare and keep such book or books referred to in the immediately preceding section of

Copy of
ship's mani-
fests to be

A.D. 1913. this Act the owner agent or person in charge of every vessel
furnished to arriving at or departing from the port and harbours shall within
Trustees. fourteen days after the arrival or departure of such vessel
furnish to the collector a copy of the ship's manifest or such
other document as will show the names descriptions residences
and places of business of all persons who have paid rates in
respect of such vessel or of the goods therein under the
Schedules E and F to this Act annexed and every owner agent
or person in charge of any such vessel who shall refuse or
neglect to furnish such copy shall for every such offence be
liable to a penalty not exceeding ten pounds to be recovered
in the same manner as other penalties to be imposed under the
provisions of this Act.

Rules for
electing
shipowners
and rate-
payers
Trustees.

20. The following rules shall be observed with respect to
the election of shipowners and ratepayers Trustees in the month
of November one thousand nine hundred and thirteen and in
every third year thereafter:—

- (1) The clerk or failing him some person appointed by the
sheriff shall be the returning officer :
- (2) On every occasion of the nomination of shipowners
and ratepayers Trustees the returning officer shall
convene a meeting of the electors for the purpose of
such nomination and shall give notice of such
meeting and of the time and place at which it is
to be held by advertisement in some one or more
of the newspapers published in the burgh and by
causing a copy of such notice to be sent by post to
each elector at least two days before such meeting :
- (3) Such meeting for the purpose of the nomination of
shipowners and ratepayers Trustees shall be convened
for the last Tuesday of October one thousand nine
hundred and thirteen and for the last Tuesday of
October in every third year thereafter :
- (4) The returning officer shall preside and regulate the pro-
ceedings at such meeting and shall decide whether
any nomination herein-after provided for is valid and
his decision shall be final :
- (5) At any such meeting any qualified person may if he
consent thereto be nominated as a shipowners and
ratepayers Trustee by any elector and seconded by

any other elector and the proposer and seconder shall immediately deliver to the returning officer a nomination paper subscribed by them in which shall be set forth the christian name and surname with the place of abode and designation of the candidate nominated and of his proposer and seconder: A.D. 1913.

- (6) If more candidates shall be nominated than the number to be elected a poll shall be taken in manner hereinafter mentioned but if only the number or less than the number of candidates to be elected be nominated a declaration by the returning officer that the candidates are elected shall be evidence of the fact:
- (7) In the event of the requisite number of shipowners and ratepayers Trustees not being elected the vacancies shall be filled up in manner provided by the section of this Act the marginal note of which is "Shipowners and ratepayers Trustees occasional vacancies how to be filled up":
- (8) Where more candidates than the number to be elected are nominated any of such candidates may withdraw from his candidature by notice signed by him and delivered to the clerk not later than two o'clock in the afternoon of the day next after that on which the nomination was made Provided that such notices shall take effect in the order in which they are delivered to the clerk and that no such notice shall have effect so as to reduce the number of candidates ultimately standing nominated below the number to be elected Trustees.

21. The following rules shall be observed with respect to taking the poll for the election of shipowners and ratepayers Trustees at the election which is to take place in the month of November one thousand nine hundred and thirteen and in every third year thereafter:—

Rules as to
taking the
poll.

- (1) In the event of a poll the returning officer shall not later than twelve o'clock noon on the second day after that on which the nominations were made direct the poll to be taken on the first Tuesday of November of the year in which shipowners and ratepayers Trustees are to be elected under the provisions of this Act at such place within the

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burgh as he may determine and shall forthwith by advertisement in some one or more of the newspapers published in the burgh give notice of such place and day and of the candidates nominated and not withdrawn described as in their respective nomination papers:

- (2) The poll subject to the provisions of this Act shall be taken in like manner as a poll at a contested municipal election is directed by the Ballot Act 1872 to be taken and subject to the provisions of this Act the provisions of that Act shall apply to the election of shipowners and ratepayers Trustees with the substitution of the words "election of shipowners and ratepayers Trustees" for the words "municipal election" and of the words "shipowners and ratepayers Trustees" for the words "town councillors":
- (3) The poll shall be open at ten o'clock in the forenoon and shall close at four o'clock in the afternoon of the same day:
- (4) The poll may be closed at any time before four o'clock if one hour has elapsed during which no vote has been tendered:
- (5) At the close of the poll the returning officer shall sum up the votes and as soon as possible publish the names of the persons elected as herein mentioned by advertisement in some one or more of the newspapers published in the burgh:
- (6) If two or more persons have the same number of votes all of whom cannot be elected as shipowners and ratepayers Trustees the returning officer shall determine the person to be elected:
- (7) The returning officer shall in every case transmit to the clerk a copy of the list which he publishes showing the result of the election:
- (8) The returning officer shall deliver the ballot papers in a sealed cover to the clerk to be kept among the records of the Trustees subject to the direction of the sheriff:
- (9) The expenses incident to the election (but not including the expenses of any candidate) shall be paid by the Trustees out of the revenues of the port and

harbours Provided that if any question shall arise as to such expenses such question shall be referred to the sheriff whose decision thereon shall be final and conclusive : A.D. 1913.

- (10) No provision of the Ballot Act 1872 which imposes any duty or obligation on the Postmaster-General shall be deemed to apply to the election of Trustees under this Act.

22. If any person shall wilfully personate any person entitled to vote in pursuance of this Act or falsely assume to act in the name of or on the behalf of any person so entitled to vote he shall for every such offence be liable to a penalty not exceeding twenty pounds. Penalty on personation of voter.

23. If any shipowners and ratepayers Trustee die or resign or become disqualified or incompetent to act or shall cease to be a Trustee from any other cause than that of going out of office under the provisions of this Act every such vacancy shall be filled up in the manner following (that is to say) the remaining shipowners and ratepayers Trustees shall within one month after such vacancy shall occur elect a person duly qualified in the stead of the shipowners and ratepayers Trustee so dying or resigning or becoming disqualified or incompetent or ceasing to be a Trustee and the Trustee whose name shall appear at the top of the list of shipowners and ratepayers Trustees shall be chairman of the meeting convened to elect such person or persons and shall be entitled to a casting as well as a deliberative vote and in every case the Trustee so elected shall continue in office for the same period that the person in whose place he is elected would in ordinary course have continued when he shall go out of office. Shipowners and rate-payers Trustees occasional vacancies how to be filled up.

24. Every person who is qualified as herein-after mentioned shall be entitled to vote in the manner herein-after provided at the election of stockholders Trustees and to give such vote or votes as herein-after mentioned (that is to say) :— Qualification of electors of stockholders Trustees.

Every person (herein-after in this Act called "stockholders elector") who on the first day of September one thousand nine hundred and thirteen and on the first day of September in every third year thereafter is a stockholder to the extent of one hundred pounds or more shall be entitled to one vote for every one hundred pounds held by him.

A.D. 1913.

Qualification of
stockholders
Trustees.Where
several per-
sons jointly
qualified to
vote one
only of such
persons to
vote.Register of
stockholders
electors.Stockholders
Trustees.Stockholders
Trustees
occasional
vacancies
how to be
filled up.

25. Every person not under legal incapacity shall be qualified to be elected a stockholders Trustee.

26. If several persons including Trustees be jointly entitled to the qualification prescribed by this Act for a stockholders elector then the person whose name stands first on the stock register shall be qualified to be a stockholders elector in virtue of such qualification unless notice to the contrary shall have been given to the Trustees.

27. The Trustees shall cause a register to be made of the names of the stockholders electors and of the number of votes to which they are entitled and shall from time to time amend and correct the same so that it may correctly set forth the names of such persons and the number of votes to which they are entitled.

28. In the month of November one thousand nine hundred and thirteen the stockholders electors shall elect six stockholders Trustees in accordance with the provisions herein-after contained who shall come into office on the third Tuesday of November one thousand nine hundred and thirteen and shall remain in office until the third Tuesday of November one thousand nine hundred and sixteen when they shall go out of office and in the month of November one thousand nine hundred and sixteen the stockholders shall elect six stockholders Trustees to supply the places of the stockholders Trustees who go out of office in November one thousand nine hundred and sixteen and so on in every third year thereafter.

29. If any stockholders Trustee die or resign or become incompetent to act or cease to be a Trustee from any other cause than that of going out of office under the provisions of this Act every such vacancy shall be filled up in the manner following (that is to say) the remaining stockholders Trustees shall within one month after such vacancy occurs elect a person duly qualified in place of the stockholders Trustee so dying or resigning or becoming incompetent or ceasing to be a Trustee and the Trustee whose name shall appear at the top of the list of stockholders Trustees shall be chairman of the meeting convened to elect such person or persons and shall be entitled to a casting as well as a deliberative vote and in every case the stockholders Trustee so elected shall continue in office for the same period

that the person in whose place he is elected would in ordinary course have continued when he shall go out of office. A.D. 1913.

30. With respect to the election of stockholders Trustees the following provisions shall have effect:—

Election of
stockholders
Trustees.

- (1) In each year in which an election takes place the same shall be held on the second Tuesday in November:
- (2) The clerk or failing him a person to be appointed by the sheriff shall be the returning officer whose decision in reference to any question arising shall be final:
- (3) Fourteen days at least prior to the day of election of stockholders Trustees the returning officer shall convene a meeting of the stockholders electors for the purpose of nominating stockholders Trustees and shall give notice of such meeting and of the time and place at which it is to be held by advertisement in some one or more of the newspapers published in the burgh and in Glasgow and Edinburgh and by causing a copy of such notice to be sent by post to each stockholders elector at least seven days before such meeting and a certificate by him that such notices have been sent shall be evidence of the fact:
- (4) The returning officer shall preside and regulate the proceedings at such meeting and shall decide whether any nomination herein-after provided for is valid and his decision shall be final:
- (5) At any such meeting as aforesaid any qualified person may if he consent thereto be nominated as a stockholders Trustee by any stockholders elector and seconded by any other stockholders elector and a nomination paper in the form set forth in Schedule B to this Act annexed subscribed by them in which shall be set forth the christian name and surname with the place of abode and designation of the candidate nominated and of his proposer and seconder shall immediately be delivered to the returning officer:
- (6) When more than six candidates are proposed any of such candidates may withdraw from his candidature by notice signed by him and delivered to the returning

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officer not later than four o'clock in the afternoon of the day immediately succeeding that on which the nomination was made :

- (7) If more candidates than six are proposed and a sufficient number do not withdraw the election shall take place in manner herein-after provided but if only six or less than six candidates are proposed or if more than six are proposed and a sufficient number withdraw the returning officer shall declare the candidates proposed or the candidates proposed and not having withdrawn as the case may be duly elected Trustees and such declaration shall be evidence of the fact :
- (8) Ten days at least prior to the day of election the returning officer shall in the event of a contest send by post to each stockholders elector a voting paper in the form set forth in Schedule C to this Act annexed containing the names of the candidates and the votes of such stockholders elector shall be recorded in accordance with the directions in the said form :
- (9) Every stockholders elector may vote for as many candidates as there are stockholders Trustees to be elected or for any lesser number and the returning officer shall in summing up the votes allow to each of the candidates voted for the number of votes to which the stockholders elector is entitled according to the register of electors :
- (10) It shall not be competent to use any voting paper or to reckon the same for the purposes of any election unless it has been returned to the office of the Trustees not less than forty-eight hours before the day of election :
- (11) On the day of election the votes shall be counted by the returning officer and the candidates who shall be found to have the greatest number of valid votes shall be declared by the returning officer duly elected stockholders Trustees and such declaration shall be evidence of the fact :
- (12) If two or more candidates have the same number of votes both or all of whom cannot be elected Trustees the returning officer shall determine by lot the person or persons to be elected :

(13) In the event of the requisite number of Trustees not being elected the vacancies shall be filled up in manner provided by the section of this Act the marginal note of which is "Stockholders Trustees occasional vacancies how to be filled up." A.D. 1913.

31. Every retiring Trustee shall if duly qualified be eligible for re-election. Retiring Trustees eligible for re-election.

32. No act or proceeding of the Trustees or of any committee of the Trustees shall be invalidated or be illegal in consequence of there being any vacancy in the number of Trustees at the time of such act or proceeding or of the non-appointment or non-election of any Trustee by any persons bodies or corporations authorised by this Act to appoint or elect a Trustee or Trustees. Act of Trustees not invalidated by vacancy or non-appointment or non-election.

33. No member of the corporation shall be eligible to be elected a shipowners and ratepayers Trustee or stockholders Trustee and any shipowners and ratepayers Trustee or any stockholders Trustee who shall be elected a member of the corporation shall ipso facto thenceforth cease to be a Trustee and a new Trustee shall be elected in his place in the manner provided for filling up occasional vacancies of shipowners and ratepayers Trustees or stockholders Trustees as the case may be. Provided always that nothing herein contained shall prejudice or affect the right of the said shipowners and ratepayers Trustee or stockholders Trustee as the case may be so ceasing to be a Trustee to be returned as one of the representatives from the corporation. Member of corporation not to be eligible as shipowners and stockholders or ratepayers Trustee.

34. If at any time subsequently to the appointment or election of any Trustee he shall accept or continue to hold any office or place of trust or profit under the Trustees or be concerned as principal or surety in any contract entered into with the Trustees (other than a contract of lease or a feu contract or disposition of heritable property belonging to the port and harbours) or participate in any manner in any work to be done under the authority of this Act such person shall cease to be a Trustee and his office shall become vacant on an entry to the effect that such vacancy has occurred being made by the Trustees in their minute book. Provided always that no person being a shareholder or member of any company established by or under Act of Parliament or charter or of any company constituted by voluntary contract and consisting of a greater number Trustees not to hold office nor be concerned in contracts.

A.D. 1913. — of partners than five shall be prevented from acting as a Trustee under this Act by reason of any contract entered into between such company and the Trustees.

Appoint-
ment of
chairman of
Trustees.

35.—(1) At the first general meeting of the Trustees under this Act and at the annual general meeting in every third year thereafter the corporation Trustees the shipowners and ratepayers Trustees and the stockholders Trustees shall by a majority of three-fourths of the said Trustees appoint a person who at the time is not one of the Trustees to be the chairman of the Trustees who shall remain in office until the third Tuesday of November one thousand nine hundred and sixteen and until the third Tuesday of November in every third year thereafter when he shall go out of office but shall be eligible for re-appointment. Provided always that if the before-mentioned Trustees at the first general meeting of the Trustees and at the annual general meeting in every third year thereafter do not agree as aforesaid on the appointment of some person as herein-before in this section mentioned as chairman of the Trustees application shall forthwith be made by the clerk to the Board of Trade to appoint and the Board of Trade shall as soon as practicable appoint some impartial person to be the chairman of the Trustees and such person so appointed shall remain in office until the third Tuesday of November one thousand nine hundred and sixteen and until the third Tuesday of November in every third year thereafter when he shall go out of office but in the event of any subsequent application being made by the clerk to the Board of Trade for the appointment of a chairman of the Trustees such person shall be eligible for re-appointment.

(2) Any vacancy in the office of chairman of the Trustees shall be filled by the appointment of a person as herein-before in this section mentioned (A) by the corporation Trustees the shipowners and ratepayers Trustees and the stockholders Trustees at a special meeting of the Trustees called for the purpose as soon as may be after such vacancy occurs or (failing such appointment as aforesaid) (B) by the Board of Trade (on the application of the clerk) as soon as practicable after such meeting and the person so appointed shall continue in office as the chairman of the Trustees for the same period as the person in whose place he is appointed would in the ordinary course have continued in office when he shall go out of office but shall be eligible for re-appointment.

(3) The Trustees may if they think fit pay the chairman of the Trustees such annual sum in name of salary as the Trustees may from time to time determine. A.D. 1913.

36. At the first general meeting of the Trustees under this Act and at the annual general meeting in every year thereafter the Trustees shall elect from among their number a deputy chairman who shall hold the said office until the next annual general meeting of the Trustees. Deputy chairman.

37.—(1) Until the appointment of a chairman of the Trustees under the provisions of the section of this Act the marginal note of which is "Appointment of chairman of Trustees" the deputy chairman or in his absence a Trustee chosen by the meeting as chairman shall preside at all the meetings of the Trustees and after such appointment the chairman and in his absence the deputy chairman shall preside and in the event of the absence of both of these persons a Trustee shall be chosen by the meeting as chairman. Chairman of meetings.

(2) In case of an equality of votes at any meeting of the Trustees the chairman or deputy chairman or the Trustee acting as chairman shall in addition to his own vote have a second or casting vote.

38. The Trustees shall hold their first general meeting under this Act on the Wednesday following the third Tuesday of November one thousand nine hundred and thirteen at the board room of the Trustees within the burgh and shall thereafter hold a meeting once in every month or more often as the Trustees shall think fit on such day and at such hour as they shall from time to time by resolution appoint and the Trustees shall hold an annual general meeting upon the Wednesday following the third Tuesday of November in each year Provided that in the event of any general meeting of the Trustees falling to be held on a public or local holiday the Trustees may by resolution alter the date of such meeting but so that it shall be held in the month of November. First and other meetings.

39. At all meetings of the Trustees seven shall be a quorum and no business shall be transacted at any meeting of the Trustees unless a quorum shall be present at such meeting and if at any such meeting there shall not be a quorum present within one half hour after the time appointed for such meeting then it shall be lawful for the Trustees or Trustee present or the clerk in the Quorum of Trustees and adjournment on failure of meeting.

A.D. 1913. absence of all the Trustees to adjourn such meeting to another day and notice shall be given of the day place and purpose of such adjourned meeting in manner herein-after mentioned.

Adjourned
meetings.

40. Every meeting of the Trustees may be adjourned from time to time and no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which such adjournment took place unless two days previous notice be given in manner required in regard to special meetings.

Special
meetings.

41. The Trustees may hold special meetings and the chairman of the Trustees or in his absence the deputy chairman may call such special meetings or may require the clerk to call special meetings to be held but no such meeting shall be held unless two days notice thereof shall be given.

How meet-
ings to be
called.

42. All meetings of the Trustees to be held under the authority of this Act shall be called by cards or circulars issued by the clerk and delivered to each of the Trustees or left at his usual place of abode or place of business or posted addressed to his usual place of abode or place of business two days at least before such meeting.

Orders not
to be altered
without
notice.

43. No order made by the Trustees at any of their meetings shall be altered or revoked unless at some meeting called for that special purpose or unless notice of such intention be given in the card or circular calling such meeting.

Power to
appoint
committees.

44. The Trustees may at any meeting from time to time appoint committees for such purposes as in the opinion of the Trustees would be better regulated and managed by means of such committees and the Trustees shall fix the quorum of any such committee and name the chairman and may continue alter or discontinue such committee.

Meetings of
committees.

45. Every committee so appointed may meet from time to time and may adjourn from place to place as they may think proper for carrying into effect the purposes of their appointment and at all meetings of the committee the chairman of the committee and in his absence one of the members present to be appointed by the meeting shall preside and all questions shall be determined by a majority of the votes of the members present and in case of equality the presiding chairman shall have a casting vote in addition to his vote as a member of the committee.

PART III.

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TRANSFER OF PORT AND HARBOURS AND PROPERTY TO THE
TRUSTEES AND CONTINUANCE OF EXISTING RIGHTS.

46. On and after the appointed day the port and harbours and the whole rights of the existing trustees shall be and the same are hereby vested in and transferred to the Trustees.

Port and har-
bours and pro-
perty vested in
Trustees.

47. Subject to the provisions of this Act and notwithstanding the repeal effected by this Act—

Saving from
effect of
repeal.

(A) The "A" debenture stock shall be and continue valid and available for all the purposes thereof and for and against all parties as if this Act had not been passed:

(B) All acts works matters and things done or commenced under the powers of the Acts and Orders repealed as aforesaid or any of them which were at the commencement of this Act valid and available or in progress and all existing notices to treat agreements awards conveyances contracts covenants deeds instruments feus leases obligations rights and remedies shall be and continue valid and available for all purposes and for and against all parties and may be continued enforced and completed as if this Act had not been passed:

(C) All actions arbitrations prosecutions and proceedings by with or against the existing trustees by reason of any matter or thing done before the commencement of this Act in execution of or in relation to any of the Acts or Orders repealed as aforesaid may be continued commenced or prosecuted by or against the Trustees as if this Act had not been passed:

(D) All existing byelaws rules regulations orders and licences in execution of or in relation to any of the Acts or Orders repealed as aforesaid shall continue in force until repealed altered or revoked under the provisions of this Act or until their expiration and may be enforced in like manner and with the same penalties as if made for like purposes respectively under the provisions of this Act:

(E) All rates rents charges and other sums at the commencement of this Act due to the existing trustees in

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respect of the port and harbours may be collected and recovered by the Trustees as if this Act had not been passed :

(F) All books and documents which under any of the Acts or Orders repealed as aforesaid or otherwise would have been receivable in evidence shall be admitted in evidence in all courts and proceedings as if this Act had not been passed :

(G) All plans sections and books of reference and all corrections and certificates of corrections thereof respectively deposited for the purposes of any of the Harbour Acts with any town clerk clerk of the peace or sheriff clerk shall remain in his custody for all intents and purposes as if this Act had not been passed.

Officers to be continued.

48. The officers appointed by the existing trustees under the Harbour Acts or any of them shall continue to hold their offices during the terms of their respective appointments or until they resign or are removed and they shall be subject to the provisions of this Act and all bonds or securities granted for the conduct and intromissions of such officers shall be and remain valid and may be enforced by the Trustees to the same extent and effect as such bonds or securities might have been enforced by the existing trustees if this Act had not been passed.

PART IV.

ACCOUNTS AND AUDIT THEREOF.

Auditor to be appointed.

49. The Trustees shall apply annually to the sheriff to appoint and the sheriff shall on such application annually appoint an auditor (not being one of the Trustees or an officer of the Trustees) to audit the accounts of the Trustees and the Trustees shall suitably remunerate the said auditor who shall be eligible for re-appointment and in the event of any dispute as to such remuneration the same shall be fixed by the sheriff whose decision shall be final.

Accounts to be audited.

50. It shall be the duty of such auditor once in every three months to audit the accounts of the Trustees and for such purpose the Trustees shall deliver to him their accounts and books and the proper vouchers in support of the same and the auditor shall examine the accounts and books and vouchers of the Trustees and report annually not later than the first Tuesday of August

on the said accounts and books and vouchers of the Trustees who shall consider and dispose of the same at their first meeting after the said report shall be received or at some adjournment thereof. A.D. 1913.

51. The Trustees within one month after sending to the sheriff clerk the copy of their annual account in abstract shall send a copy of the same to the Board of Trade and section 16 of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any and every such account and the Trustees shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section and the Trustees shall within the like period send a copy of such abstract to the corporation. Annual account to be sent to Board of Trade.

PART V.

WORKS.

52. Subject to the provisions of this Act the Trustees may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described or some of them or some part or parts thereof and the works and conveniences connected therewith and may enter upon take hold and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes (that is to say) :— Power to execute works.

- (1) The widening on both sides and deepening of the entrance to the Garvel Graving Dock and the lowering of the sill of the said graving dock wholly situate in the east parish of Greenock parish of Greenock and bed and foreshore of the river or firth of Clyde and county of Renfrew :
- (2) The extension of the East India Wharf wholly situate in the east parish of Greenock parish of Greenock and bed and foreshore of the river or firth of Clyde and county of Renfrew commencing at the south-eastern termination thereof and terminating at the north-east corner of the western side of the entrance to the Victoria Harbour :
- (3) The extension of the Custom House Quay in a south-easterly direction for a distance of eighty feet or

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thereby from its present termination wholly situate in the mid parish of Greenock parish of Greenock and bed and foreshore of the river or firth of Clyde and county of Renfrew :

(4) An opening bridge wholly situate in the mid parish of Greenock parish of Greenock and bed and foreshore of the river or firth of Clyde and county of Renfrew of a span of eighty feet or thereby across the entrance to the east harbour commencing at or near the termination of the last-mentioned work and terminating at or near the eastern side of the entrance to the said east harbour :

(5) The widening of the east end of Princes Pier and west end of Albert Quay wholly situate in the west parish of Greenock parish of Greenock and bed and foreshore of the river or firth of Clyde and county of Renfrew commencing at a point 950 feet or thereby south-east of the north-west corner of Princes Pier and terminating at a point four hundred and thirty feet or thereby north-west of the north-east corner of the western side of the entrance to the Albert Harbour.

Power to
make subsi-
diary works.

53. Subject to the provisions of this Act the Trustees may within the port and harbours make and maintain on in over under or in connexion with the works herein-before described or referred to or any of them all necessary and convenient railways tramways sidings rails junctions bridges crossings turntables roads accesses approaches gates retaining and other walls sheds buildings offices warehouses stores bins hoppers weighing machines slipways shipping places locks basins caissons sluices jetties quays wharves wharf walls river walls sheet and other piling landing stages staiths cranes coal-tips elevators pumps transporters hydraulic and other lifts hoists drops dolphins buoys moorings beacons lighthouses slips stairs sewers drains water-courses culverts lines of pipes and other works machinery and conveniences or any of them.

Power to
alter roads
&c.

54. For the purposes and during the execution of the works by this Act authorised and in maintaining the same the Trustees may subject to the provisions of this Act temporarily use break up or cross over or under alter or stop up and interfere with any streets highways roads lanes paths quays

bridges railways tramways sidings canals passages sewers drains streams watercourses gas-pipes and water-pipes and electric telegraphic or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference and which they may find it expedient for any of those purposes so to interfere with providing when possible a proper substitute before interrupting the traffic on any such street highway railway or tramway or the flow of water gas sewage electricity or telegraphic or telephonic communication in any such sewer drain watercourse canal or pipe or apparatus and making full compensation to all persons injuriously affected by the exercise of the powers of this section Provided that nothing in this section shall extend to or authorise any interference with electric telegraphic or telephonic apparatus or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Act 1882 to which the provisions of section 15 of the said Act apply except in accordance with the provisions of that section.

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55. Subject to the provisions of this Act the Trustees in constructing the works by this Act authorised may deviate laterally from the lines thereof delineated on the deposited plans to any extent not exceeding the limits of deviation defined on the said plans and may deviate vertically from the levels of the said works as defined on the deposited sections to any extent not exceeding twelve feet Provided that no deviation either lateral or vertical below high-water mark shall be made on works within tidal waters without the consent in writing of the Board of Trade.

Power to deviate.

56. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Trustees any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals as far as the same are applicable in this behalf shall extend and apply to such servitudes rights and privileges as aforesaid respectively.

Power to take servitudes &c. by agreement.

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Lights on
works during
construction.

57. The Trustees shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. If the Trustees fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Penalty for
obstructing
works.

58. Every person who wilfully obstructs any person acting under the authority of the Trustees in setting out the lines of the works by this Act authorised or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of the said works or defaces injures or destroys the same or any part thereof shall be guilty of an offence and shall for every such offence be liable to a penalty not exceeding five pounds which may be recovered by the Trustees under the Summary Jurisdiction (Scotland) Act 1908.

Period for
compulsory
purchase of
lands.

59. The powers of the Trustees for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the commencement of this Act.

Power to
take addi-
tional lands
by agree-
ment.

60. The Trustees may from time to time for the purposes of the port and harbours purchase by agreement and hold any lands not exceeding in the whole at one time ten acres in addition to the lands which they are by this Act authorised to acquire by compulsory purchase. Provided that such lands purchased by agreement shall not be built over except for purposes connected with the port and harbours. Provided further that nothing in this section shall empower the Trustees to cause or permit a nuisance on any such lands.

New works
to form part
of port and
harbours for
all purposes.

61. Subject to the provisions of this Act the works by this Act authorised shall for all purposes including the power to levy and recover rates dues tolls and rents and all other charges be and be deemed to be part of the port and harbours and the whole powers rights and authorities of the Trustees shall apply to and may be exercised therein and with respect thereto as fully and freely in all respects as in or upon any other part of the port and harbours.

62. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Trustees after giving ten days notice to the owners lessees and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the county of Renfrew and a duplicate thereof shall also be deposited with the town clerk of the burgh and with the clerk to the parish council of the parishes in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such sheriff clerk town clerk and clerk to the parish council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Trustees may enter upon take and use the lands and execute the works in accordance with such certificate.

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 Correction
 of errors in
 deposited
 plans and
 book of
 reference.

63. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on in over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Works below
 high-water
 mark to be
 subject to
 approval of
 Board of
 Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Trustees and the amount of such cost shall be a debt due from the Trustees to the Crown and shall be recoverable as a Crown debt or summarily.

64. If at any time the Board of Trade deem it expedient for the purposes of this Act to order a survey and examination

Survey of
 works by

A.D. 1913. of a work constructed by the Trustees on in over through or
Board of across tidal lands or tidal waters or of the intended site of any
Trade. such work the Trustees shall defray the expense of the survey
and examination and the amount thereof shall be a debt due
from the Trustees to the Crown and be recoverable as a Crown
debt or summarily.

Abatement
of work
abandoned
or decayed.

65. If a work constructed by the Trustees under the powers
of this Act on in over through or across tidal lands or tidal
waters is abandoned or suffered to fall into decay the Board
of Trade may abate and remove the work or any part of it and
restore the site thereof to its former condition at the expense
of the Trustees and the amount of such expense shall be a debt
due from the Trustees to the Crown and be recoverable as a
Crown debt or summarily.

Exhibition
of lights on
works.

66.—(1) After completion or permanent discontinuance or
abandonment of the works the Trustees shall exhibit in such
places as may be required from sunset to sunrise such lights
(if any) and shall take such other steps for the prevention of
danger to navigation as shall from time to time be directed by
the Commissioners of Northern Lighthouses and shall apply to
such commissioners for any such directions.

(2) The Trustees shall be liable to a penalty not exceeding
ten pounds for every day during which they omit so to apply or
refuse or neglect to observe or comply with any such directions.

For pro-
tection of
Clyde
Lighthouses
trustees.

67. For the protection of the trustees of the Clyde Light-
houses the following provisions shall unless otherwise agreed on
in writing between the said trustees and the Trustees apply and
have effect (that is to say):—

(1) Notwithstanding anything contained in the section
of this Act whereof the marginal note is "Power to
deviate" or shown upon the deposited plans the
Trustees shall not in constructing Works Nos. 2 3
and 5 by this Act authorised deviate seaward to a
greater extent than three feet from the lines thereof
shown upon the deposited plans and shall construct
Works Nos. 2 and 5 of open piling:

(2) Notwithstanding anything contained in section 6 (For
protection of Greenock Harbour trustees) of the
Clyde Lighthouses Order 1912 the trustees of the
Clyde Lighthouses shall be under no obligation to

maintain the existing depths of the water referred to in subsection (5) of that section and shown upon the plan referred to in that section within a distance of twenty-five feet from any of the works constructed under the powers of this Act. A.D. 1913.

68.—(1) The Trustees shall not construct Work No. 1 by this Act authorised unless and until such construction has been approved by a resolution passed at a meeting of the Trustees to be held after the appointed day by a majority of the Trustees present and voting at such meeting. Special consent for construction of certain works &c.

(2) The Trustees shall not construct or provide—

(A) Works Nos. 2 3 or 4 by this Act authorised; or

(B) Any of the works or equipment (other than a fitting-out crane of not exceeding one hundred and fifty tons lifting capacity) mentioned in Part VII. (Limits of Port and Harbours Maintenance of Works &c.) of this Act involving a capital expenditure on any one of the said works or items of equipment of more than five thousand pounds

unless and until such construction or provision has been approved by a resolution passed at a meeting of the Trustees to be held after the appointed day by a majority of at least two-thirds of the whole number of the Trustees.

(3) The Trustees may prior to the appointed day expend out of capital a sum not exceeding in the whole five thousand pounds upon any works or equipment mentioned in Part VII. (Limits of Port and Harbours Maintenance of Works &c.) of this Act which do not involve a capital expenditure on any one of the said works or items of equipment of more than five thousand pounds and the Trustees may prior to the appointed day proceed with the erection of the fitting-out crane mentioned in paragraph (B) of subsection (2) of this section.

PART VI.

TRANSIT SHEDS AND WAREHOUSES &c.

69. The Trustees may erect transit sheds on or with the consent of the Commissioners of His Majesty's Customs and Excise (herein-after called "the Commissioners of Customs") adjacent to any of the quays of the port and harbours except Power for Trustees to provide and declare transit sheds.

A.D. 1913. in front of the passenger station of the Glasgow and South Western Railway upon the south side of Princes Pier for the reception of goods on such plan and of such dimensions as they think fit subject nevertheless as to plans and dimensions and in all other respects to the approval of the Commissioners of Customs and may with the like consent make and declare any of the existing sheds on the said quays or any parts of such sheds to be transit sheds and may from time to time subject to such approval as aforesaid repair renew alter discontinue or remove the same and the same shall be part of their undertaking and they shall keep all their transit sheds in good repair and provided with all requisite apparatus and conveniences for weighing and measuring goods.

Deposit of
goods in
transit sheds.

70. The master or owner of any vessel lying at or in and using any harbour on the quay adjoining to which any transit shed may have been erected and opened for the reception of goods may with the permission of the Trustees or the superintendent and subject to such regulations as the Commissioners of Customs may deem necessary for the security of the revenue and to the regulations contained in Schedule D to this Act annexed cause such cargo or any part thereof without previously making any entry thereof upon giving due notice to the proper officer of customs and excise to be landed and deposited in such transit shed Provided that no other goods than such inward cargo shall be deposited in or be in such transit shed during the time or any part of the time that the said cargo shall remain therein and such cargo or such part of such cargo so landed and deposited in such transit shed shall for all purposes be considered as still on board the vessel from whence the same shall have been landed and shall be removable only from such transit shed in the same manner and by the same process in all respects as the same might by law have been removed from such vessel in case the same were still actually on board thereof Provided always that nothing herein shall affect or limit the rights or obligations of the said master or owner of the said vessel or the owner or consignee of the goods under the contract made for the carriage of the said goods with respect to the mode time or place of delivery or landing thereof.

Power for
Trustees
to make
customs

71. If any goods deposited in a transit shed are not within forty-eight hours from the commencement of deposit duly entered with the Custom House of Greenock (herein-after

called "the Custom House") the Trustees shall on the next A.D. 1913.
 ensuing day cause the same to be entered at the Custom House
 and having obtained the proper customs authority for so doing entries on
 may cause the same to be forthwith weighed or measured and neglect of
 for that purpose may remove unpile repile cooper or repair the owner &c.
 same and perform any other work requisite thereto but nothing
 in this Act shall prevent the owner of the goods from employing
 any person for any such purpose and after the goods have been
 passed by the proper officer of customs and excise they shall cease
 to be considered as on board the vessel whence they were landed
 and shall be at the risk costs and charges of their owner but
 under and subject to all liens and charges that attached thereto
 on board the vessel.

72. The Trustees may make reasonable charges for work Power for
 and labour done by them in relation to any goods which they Trustees to
 enter as aforesaid and may retain the same as security for the charge for
 payment of the customs duties and of the Trustees charges service and
 and the Trustees may if they think fit also detain the same for to detain &c.
 freight lien or other charges claimed in respect thereof in case
 they have notice in writing to do so.

73. Goods entered by the Trustees as aforesaid shall not be Goods not
 liable to seizure or forfeiture by reason of any unintentional liable to seizure
 inaccuracy in the entry thereof. for inaccurate
 entry.

74. The regulations set forth in Schedule D to this Act Regulations
 annexed subject to the regulations of the Commissioners of for transit
 Customs shall be enforced respecting the transit sheds for the sheds.
 time being belonging to the Trustees but the Trustees may
 from time to time if and as they think fit subject to the
 regulations as aforesaid revoke amend or add to those regu-
 lations or any of them such revocation amendment or addition
 before coming into force to be allowed and confirmed as provided
 by the Harbours Docks and Piers Clauses Act 1847.

75. The Trustees may erect upon and around any of the Trustees
 quays of the port and harbours on which they may not be may erect
 prohibited so to do under the section of this Act the marginal or adapt
 note of which is "Power for Trustees to provide and declare warehouses
 transit sheds" or on such other sites as may be acquired by on quays.
 agreement for such purpose under the provisions of the Harbours
 Docks and Piers Clauses Act 1847 herewith incorporated such
 and so many warehouses of such dimensions and of such

A.D. 1913. height and with such and so many vaults and cellars and of such materials and in such manner and form in all respects as they shall deem proper and may from time to time alter vary and remove the same and also may fit up adapt and use for the said purpose any existing warehouses belonging to the Trustees which existing warehouses shall thereupon be subject to all the provisions and entitled to all the privileges in this Act contained regarding warehouses which may be erected under the authority of this Act.

Trustees
may purchase or lease
warehouses.

76. The Trustees may also for the purposes of this Act from time to time by agreement with the owners of the same purchase or take on lease warehouses situated within the burgh belonging to any person including warehouses belonging to such person approved by the Commissioners of Customs for the reception and custody of bonded goods and such warehouses when purchased or while held under lease shall be subject to all the provisions and entitled to all the privileges in this Act contained regarding warehouses which may be erected under the authority of this Act.

Power to
appoint
superintendent of
transit
sheds and
warehouses.

77. The Trustees may appoint a superintendent of the transit sheds and warehouses belonging to or held on lease by the Trustees with such powers of superintendence management and custody of the said transit sheds and warehouses respectively or of the goods which may be deposited therein as the Trustees may think fit to confer upon such superintendent subject to the regulations of the Commissioners of Customs and upon such appointment being made they shall publish in one or more newspapers published in the burgh a notice of such superintendent's name and the place where he is to transact the business of his office and all notices or other documents which may be required to be given to the Trustees or the superintendent with reference to the said transit sheds or warehouses or the goods therein if addressed to the Trustees or superintendent and left at the said place of business of the superintendent during the usual business hours shall be deemed to be given to the Trustees themselves.

Power to
appoint interim
superintendent.

78. The Trustees may also from time to time appoint an interim superintendent to act in place of the superintendent in case of his absence and in such absence such interim superintendent shall have all the powers rights and duties of the superintendent and all such appointments of an interim superintendent shall be forthwith notified in one or more of the

newspapers published in the burgh and the notice shall specify the name of such interim superintendent and the duration of his appointment should such be limited in point of time. A.D. 1913.

79. Before the superintendent or interim superintendent shall enter upon the duties of his office the Trustees shall take such security as they may think sufficient for the due and faithful execution thereof. Superintendent and interim superintendent to give security.

80. The Trustees may demand and take in respect of the warehouses provided by them or of sheds wherein goods are temporarily stored other than transit sheds such charges as they and the persons using the same from time to time agree and the same may be recovered as rates and duties on goods are recoverable by the Trustees. Charges for use of warehouses.

81. The Trustees may if they think fit insure from loss or damage by fire their sheds transit sheds and warehouses and the contents thereof or any of them but they shall not be under any obligation to do so. Trustees may insure against fire.

82. The Trustees may appoint license and employ weighers and recorders of weights in connexion with the powers in this Act conferred on them as warehouse-keepers and may pay such salaries and wages to the superintendent and interim superintendent and such remuneration to the said weighers and recorders of weights as to the Trustees shall seem proper and they may also from time to time fix the remuneration to be paid to such parties when and if employed by parties other than the Trustees. Power to appoint weighers and recorders of weights and to pay salaries and wages.

83. The quays over which any warehouses shall be erected under this Act if such warehouses shall be erected on the verge of any quay shall so far as regards the surface thereof be reserved for public quays for the loading unloading and shipment of goods subject only to the general regulations of the port and harbours and the owner of any goods which may be landed or shipped on or from such quays shall not be obliged to deposit such goods in such warehouse nor be subject to the payment of warehouse rent unless such goods be actually deposited in such warehouse but such goods shall not without the consent of the Trustees remain on such quays more than forty-eight hours and if they shall remain longer than such period the Trustees may warehouse such goods. Provided that nothing herein contained shall be construed to prevent the Trustees from stowing goods Surface of quays reserved as public quays.

A.D. 1913. on the ground or quay floor of any such warehouse if sufficient space be left for the loading unloading and shipment of goods as aforesaid.

Provision as to huts &c. for revenue officers.

84. The provisions of the Harbours Docks and Piers Clauses Act 1847 as to providing huts and weighing materials for the officers of the revenue and imposing penalties for not providing the same and for allowing the same to fall into disrepair shall apply to the warehouses erected adapted or acquired or leased by the Trustees.

Warehouses to be part of port and harbours.

85. All warehouses constructed adapted acquired or leased by the Trustees shall be held to be part of the port and harbours.

Warehouses to be used as customs or excise warehouses.

86. Subject to the provisions of any Act for the time being in force and the regulations of the Commissioners of Customs with respect to approval and otherwise in relation to warehouses the Trustees may at their discretion use as a customs or excise warehouse any warehouse belonging to or leased by them or any part of such warehouse.

Power to take rents and charges.

87. The Trustees may within the limits of the port and harbours act as warehouse-keepers on payment by the owners of goods warehoused and deposited or the person in charge of such goods of such rents or charges as may from time to time be fixed by the Trustees Provided always that the Trustees shall not be entitled to act as aforesaid or make such charges if and so long as the owners of such goods are themselves ready and willing to perform such acts..

Goods to be warehoused by Trustees to be previously weighed &c.

88. The Trustees may require previous to any goods being warehoused by them as aforesaid that the goods shall be weighed by weighers and recorders appointed by them, and they shall be entitled to make such reasonable charges in respect of such weighing as they may from time to time fix with the approval of the Board of Trade.

Rents &c. for goods when to be paid.

89. All rents and charges payable under this Part of this Act to the Trustees in respect of perishable goods shall be paid at or before the expiration of two days and in respect of any goods not of a perishable nature at or before the expiration of six months next after the cargoes of the vessels importing the same respectively shall have been completely discharged or unloaded into any warehouse of the Trustees or next after

such goods respectively shall have been brought into any such warehouse and at the expiry of every six months thereafter so long as the goods shall remain in the warehouse or previously to the removal of the same from such warehouse which shall first happen. A.D. 1913.

90. In case default shall be made in payment of any such rents or charges in respect of goods it shall be lawful for the Trustees first paying the customs duties and excise duties (if any) thereon to retain and sell the goods or any part thereof and after retaining the amount of such duties to retain and pay in the first place the rents and charges so unpaid as aforesaid including the expenses of such sale and in the next place the freight due on such goods (in case the Trustees shall have received notice that such freight has not been paid) paying the surplus (if any) and also delivering such of the said goods as shall remain unsold (the said rents and charges due in respect thereof having been discharged as aforesaid) to the person entitled thereto upon demand. Provided always that it shall be lawful for the Trustees either in lieu of selling such goods or notwithstanding such sale if the produce of such sale shall be insufficient to recover the amount of such rents and charges or the balance thereof as the case may be which shall be due to them by action to be brought in any court of competent jurisdiction. Trustees may sell goods for payment of rent and charges or may bring action.

91. If the cargo of any vessel lying at any quay shall not for the space of three days from the day on which such vessel shall have been reported at the Custom House be duly entered with the customs and the landing order lodged with the proper officer of the customs and excise the Trustees may on the requisition of the shipmaster or shipowner or of the agent of such shipmaster or shipowner cause a landing entry to be made of such cargo or of so much thereof as shall not have been entered and passed as aforesaid (such goods being such as by law may be warehoused) and may land such goods and warehouse or otherwise take charge of the same and the Trustees may retain the goods as security for the payment of the customs duties if any to which they may be subject and of the rents rates and charges payable thereon to the Trustees and also of the freight dead freight demurrage salvage or other charges due by the owners of such goods when any notice to detain the same therefor shall have been given. Trustees may enter goods if not entered by owner or consignee.

A.D. 1913.

Goods ware-
housed to re-
main subject
to freight.

92. All goods warehoused by the Trustees or deposited in any of their warehouses by any person having or claiming an interest in such goods or by the owner or master of the vessel out of which the same may have been warehoused or by any person interested in the freight of such vessel or entitled to or claiming the benefit of any other claim or lien whatsoever to which the goods were subject while the same were on board such vessel and before the warehousing thereof shall continue liable to such and the same claim or lien for freight and also to all other claims or liens whatsoever in favour of the owner or master of such vessel or of any other person interested in such goods or in the freight of the same or entitled to or claiming the benefit of any other claim or lien thereon as such goods were liable to whilst the same were on board such vessel and before the warehousing thereof.

Notice may
be given to
Trustees to
detain goods
until freight
&c. be satis-
fied or de-
posit made.

93. If notice in writing to detain such goods shall be given to the Trustees by such owner or master or other person interested as aforesaid previously to the warehousing thereof being completed the Trustees shall detain and keep such goods in their warehouses until such claims or liens together with all rates rents and charges to which the same shall have become subject or liable shall be paid or until such rates rents and charges shall be paid and a deposit equal in amount to the demand made by the owner or master of the vessel or other person interested as aforesaid for or on account of any such claim or lien as aforesaid shall have been made by the owner of such goods which deposit the Trustees shall receive and hold in trust until the amount due in respect of such claims or liens shall have been tendered or satisfied when upon proof thereof being given to the Trustees and payment made to them of all rates rents and charges if any due upon such goods such deposit shall be returned upon demand to the person by whom the same was made or to his executors administrators or assignees.

Deposit to be
considered as
made in
payment of
claim.

94. Such deposit shall be considered as made in payment of the claim or lien in respect of which such deposit shall have been made and the Trustees on the expiration of ten days next after such deposit shall have been made and in case notice in writing to retain the amount of such deposit shall not in the meantime have been given to the Trustees by some person claiming to be entitled to such goods shall (out of so much of the said deposit as shall remain after deducting and retaining

the rates rents and charges if any then due to the Trustees on the goods in respect of which such deposit shall have been made and all other expenses if any incurred by the Trustees in respect thereof) pay to the master or owner of the vessel from which such goods shall have been warehoused or other person entitled to or interested in such claim or lien the amount of his claim or lien and the payment so made by the Trustees shall release and discharge them from all claims and demands whatsoever in respect of so much of such deposit as they shall have paid to such master owner or other person interested as aforesaid. A.D. 1913.

95. The said notice to the Trustees to retain the amount of any such deposit as aforesaid shall not continue to operate or have effect for a longer period than thirty days from the service thereof unless some action suit or other proceeding for determining the title or liability to the claim or lien in respect of which such deposit shall have been made or the right to or the ownership of such deposit shall in the meantime be actually commenced and notice in writing thereof served on the Trustees. Notice to have effect for thirty days only unless action be brought.

96. If such deposit shall not be made within ninety days next after any such goods shall have been warehoused and in case notice to detain such goods shall have been given as aforesaid the Trustees may first paying the customs duties and excise duties (if any) thereon sell all or any part of such goods and may out of the proceeds thereof in the first place retain the amount of such duties and also retain and pay the rates rents and charges payable to the Trustees and the expenses of such sale and in the next place may pay the freight and other claims or liens to which such goods may be liable paying the overplus (if any) to the person entitled thereto on demand. Power of sale if deposit be not made.

97. No such sale shall be made by the Trustees until ten days previous notice in writing of such claim or lien thereon as aforesaid and of the intention to sell the said goods for satisfaction thereof shall have been given to the owner thereof if his name and residence or place of business shall appear on the manifest of the cargo or shall have been entered in the books of the warehouse in which such goods shall have been deposited by sending such notice in a registered letter by post to such residence or place of business and if such owner shall not be known then until ten days after such notice shall have been inserted once in some newspaper published in Glasgow and one or more newspapers published in the burgh and also posted in the Custom House and in the exchange or the Sugar Exchange Power of sale not to be exercised until after notice.

A.D. 1913. at Greenock and the Trustees shall not sell a greater portion of such goods than shall in their judgment be sufficient to cover the amount of the said duties rates rents charges and expenses and of such claim or lien as aforesaid.

Notice to
detain goods
must be
given.

98. Notice to detain goods for payment of freight or any other claims or liens to which such goods were liable whilst on board any vessel and before the warehousing thereof shall not be available unless the same shall be given to the Trustees before the warehousing thereof shall have been completed.

Preservation
of rights of
parties at
common law.

99. Nothing in this Act contained shall be held to take away limit prejudice or affect the power of the shipmaster or shipowner or other party having claims and liens for freight dead freight demurrage salvage average or other charges in respect of or relating to goods imported into or unshipped at the port and harbours from enforcing and securing such claims and liens in conformity with the contract express or implied under which such claims and liens arise or in the manner competent by the law of Scotland.

Power to
make bye-
laws.

100. The Trustees may from time to time make such bye-laws as they shall think expedient for all or any of the several purposes and objects following (that is to say):—

For regulating and managing the warehouses and sheds and transit sheds for the time being belonging to or held under lease by the Trustees and as to the receiving or refusing to receive carrying and conveying shipping unshipping landing relanding housing and unhousing depositing laying watching loading portage delivering and removing of goods and other things and as to the hours during which the office or place of business of the superintendent or interim superintendent and the gates and entrances of the said warehouses shall be open and as to the servants workmen and other persons who shall be permitted to be employed in or about such warehouses and for the better regulation of servants workmen and other persons employed in carrying or conveying goods or using or driving horses and carts and other carriages to or from any of the said warehouses and for preventing damage being done to any goods or other things within the said warehouses;

For regulating the weighing and recording of weights of goods within the port and harbours;

and the byelaws and regulations to be so made by the Trustees shall be published in the manner prescribed in the Harbours Docks and Piers Clauses Act 1847 and shall be observed under penalties not exceeding five pounds for each offence besides such damage as the case may infer Provided always that no such byelaw or regulation shall come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes. A.D. 1913.

101. The Trustees may make regulations as to the times and manner of paying and place of payment of money authorised to be received or paid under the authority of this Part of this Act Provided always that a copy of the said regulations shall be exhibited by the Trustees at the places in the port and harbours at which notices of the Trustees are usually posted. Regulations as to payment of money under this Part of Act.

102. The Trustees from time to time at the request of any person warehousing or depositing goods in any warehouse shed yard pond or other premises belonging to or leased by the Trustees or entitled to any goods so warehoused or deposited may if the Trustees think fit issue and deliver to him a certificate in a form approved by the Trustees of such goods having been so warehoused or deposited. Trustees may give certificates of deposited goods.

103. On delivery to the Trustees of any such certificate to be cancelled the Trustees may issue to the person delivering up the certificate a warrant for the delivery of all or any goods specified in the certificate Provided that if the warrant be for the delivery of part only of the goods the Trustees shall issue to the person delivering up the certificate a new certificate with respect to the goods not specified in the warrant. Trustees may issue warrants for delivery of goods.

104. Every such certificate and warrant shall be deemed to be a document of title to the goods specified therein and shall be transferable by indorsement and any holder of such certificate or warrant whether the person named therein or the indorsee thereof shall have the same right to the possession and property of such goods as if they were deposited in his own warehouse. Effect of certificate or warrant.

Every such certificate or warrant shall state on the face thereof the effect of this section and that it is issued under the powers of this Act.

105. No such certificate or warrant shall be given unless and until all liens and claims for freight and all other liens Certificate or warrant not

A.D. 1913.
to be given
till freights
rates &c.
paid.

and claims whatsoever to which the goods were liable while on board any vessel and before the warehousing or depositing of the same and of which the Trustees have had notice in writing and all rates rents charges and expenses payable to the Trustees with respect to the said goods or for services performed by them in respect thereof are paid or discharged.

Warrants &c.
signed by
duly autho-
rised officers
sufficient.

106. All certificates delivery warrants transfer certificates and other documents relating to goods in the custody of the Trustees or to the management of the business of the port and harbours if signed and issued by any officer or officers duly authorised by the Trustees in that behalf shall be effectual in law and binding on the Trustees and all other parties interested without any other signature and without any seal.

Surveyor
may inspect
goods on
board with
respect to
any damage
which may
have arisen.

107. Upon the requisition of the master or other person having the charge or command of any vessel which shall have brought any goods wares or merchandise into the port and harbours or of the owner agent or consignee thereof before the same are unshipped the Trustees may appoint two or more competent persons to survey and examine the said vessel and also the cargo on board of such vessel and to inquire into and ascertain the nature and extent of any injury or damage which such vessel or cargo may have sustained and such persons shall make and sign a report in writing setting forth the cause of such damage so far as can be ascertained and deliver the same to such master or other person and a duplicate thereof if required to the owner agent or consignee as aforesaid.

Trustees not
to be liable
for loss by
fire &c.

108. The Trustees shall not under any circumstances or in any case whatever be answerable or accountable for or be liable to make good any loss or damage which may happen to any goods or to any vessel or to any property of any description by fire water overflow of tides storm or tempest or from any civil commotion or by the act of the King's enemies or by other inevitable accident.

Power to
appropriate
quays &c

109. The Trustees may from time to time and at any time appropriate or grant the exclusive right to use any of their quays wharves berths for ships warehouses sheds quayage space timber yards and timber ponds and any of their other works and conveniences to any corporation company or person on such terms and conditions as the Trustees think fit.

PART VII.

A.D. 1913.

LIMITS OF PORT AND HARBOURS MAINTENANCE OF WORKS &C.

110. The limits of the port and harbours shall extend to and include the whole works lands and property vested in and belonging to the existing trustees and to the Trustees under the provisions of the Harbour Acts and this Act.

Limits of
port and
harbours.

111. With respect to lands for the time being vested in the Trustees the following provisions shall have effect (that is to say):—

Power to
maintain and
improve port
and harbours
and works
and lease and
dispose of
lands.

(1) The Trustees may from time to time provide construct repair renew and maintain timber locks docks gates sluices bridges quays piers jetties wharves cattle-pens refreshment or other buildings and rooms sheds ware-houses hoists cranes coal-tips weighing machines workshops sewers drains roads approaches streets and other works machinery and conveniences continue and if necessary lift and relay rails sidings and turntables and lay and maintain such new or additional rails sidings and turntables as shall be convenient for the traffic of the port and harbours and may alter divert or shut up roads or streets repair renew and maintain all or any of the works for the time being constructed by or belonging to them; and

(2) The Trustees may from time to time appropriate and adapt such parts as they think fit of any such lands for the purpose of shipbuilding yards or of ware-houses and generally for manufacturing trading or commercial purposes and lease such lands or any parts thereof for such periods and upon such terms and for such rent or other consideration as they think fit or sell feu or dispose of such lands or any parts thereof Provided that nothing in this section shall empower the Trustees to cause or permit a nuisance upon any such lands.

112. The Trustees may and are hereby authorised to purchase or construct or hire and employ all such dredgers hoppers barges tugs boats and other craft as may be necessary for the purposes of the Trustees and may charter hire or let the same or any of them.

Trustees
may purchase
dredgers &c.

A.D. 1913.

Harbours
may be
deepened.

113. The Trustees may from time to time cause the harbours of the Trustees and the bottom of the bed of the river opposite the same and the entrances to the said harbours to be improved cleansed and deepened in such manner and to such extent as the Trustees shall deem expedient but so always in their operations as not to interfere with or obstruct the navigation of the river. Provided that no materials excavated or dredged under the provisions of this section shall be deposited in any place below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade. Provided further that nothing contained in this section shall take away or alter any rights or powers of the trustees of the Clyde Lighthouses in and upon the river.

Power to
embank
sandbank.

114. The Trustees may and are hereby authorised to improve and render more safe the entrance to the port and harbours by raising embanking or otherwise securing the sandbank lying opposite thereto. Provided always that nothing in this Act contained shall authorise or be construed to authorise any operation upon or in regard to the said sandbank which can or may obstruct the navigation of the river. Provided further that nothing contained in this section shall take away or alter any rights or powers of the trustees of the Clyde Lighthouses in and upon the river.

For pro-
tection of
navigation
of river.

115. For the purposes of making provision for settling any disputes which may arise in regard to the effect upon the navigation of the river and the entrances to the port and harbours of the deposit of spoil under the immediately preceding section of this Act upon the sandbank opposite to the port and harbours the following provisions shall have effect (that is to say) Within one month of the Trustees agreeing to perform any operations on the said sandbank the Trustees shall appoint an engineer and the trustees of the Clyde Navigation and the trustees of the Clyde Lighthouses shall appoint an engineer and if either of the said parties shall fail so to appoint an engineer the sheriff shall on the application of the said parties appoint such engineer to act on the part of the party so failing and within three months after the appointment of the said engineers they shall examine into the intended operations of the Trustees in regard to any deposit of spoil upon the said sandbank and report to the Trustees and to the trustees of the Clyde Navigation and the trustees of the Clyde Lighthouses their opinion or if

they shall disagree their respective opinions upon the probable effect which the deposit of such spoil as aforesaid on the said sandbank would produce upon the tideway and navigation of the river and upon the entrances to the port and harbours and whether such deposit would be injurious or otherwise and if injurious whether such injury may in their opinion be prevented and such opinion or opinions shall be laid by the Trustees before the Board of Trade who shall determine after making such inquiries as they may consider necessary whether such spoil shall be deposited on the said sandbank or not and if to be so deposited under what regulations and conditions and in what form and manner whether as a breakwater or otherwise and the decision of the Board of Trade shall be final and conclusive upon all parties. Provided always that no spoil or other materials shall be deposited upon the said sandbank until such examination shall have taken place and until the decision of the Board of Trade shall have been made and in the event of such deposition or works being authorised it shall at all times afterwards be lawful for the Board of Trade either of themselves or upon the representation of the Trustees or the trustees of the Clyde Navigation and the trustees of the Clyde Lighthouses that injury is arising to the port and harbours or the navigation of the river from the operations of the Trustees under this Act upon the said sandbank to order such examination of the works in progress thereon as to the Board of Trade may appear necessary and thereafter to give such additional orders as to the Board of Trade may seem fit either to continue or alter the mode of conducting such works or to suspend or discontinue altogether any further operations upon the said sandbank so that the same may not injure the port and harbours or the navigation of the river.

A.D. 1913.

116. The Trustees may close in by locked gates and place keepers thereon for opening and shutting the said gates such of the piers quays and breasts of the harbours of the Trustees as they may think fit and exclude therefrom all and every person or persons who may not have business to do in regard to the ships or vessels goods wares and merchandise in such harbours. Provided always that in order that all and every person having business on board of the vessels or with the goods wares and merchandise within such harbours may obtain access thereto at all reasonable hours the Trustees shall make and publish and cause to be observed such byelaws thereon as may appear

For inclosing
quays.

A.D. 1913. necessary for the free ingress and egress of all and every such person or persons.

Power to
place buoys
&c.

117. Subject to the jurisdiction of the trustees of the Clyde Lighthouses the Trustees from time to time may lay or place or cause to be laid made or placed and may maintain such buoys mooring chains or anchors in the river opposite to the port and harbours for the purpose of warping or anchoring vessels as to them shall seem necessary or expedient for the use and accommodation of the shipping resorting to the port and harbours and to raise and replace the same under such restrictions conditions and regulations as they shall deem proper but so always as not to interfere with or obstruct the navigation of the river.

Power to
contract for
lighting and
power and
for supplying
water for
shipping.

118. It shall be lawful for the Trustees to contract and agree for supplying the port and harbours with gas oil or electricity for lighting or power purposes and to contract and agree with the corporation or any other corporation company or person to supply the port and harbours with water for use of the shipping resorting to and using or being within the port and harbours as they shall think necessary and proper Provided that the Trustees shall not use any electricity supplied for lighting or power purposes under this section in such a manner as to interfere with telegraphic communication by means of any telegraphic line of the Postmaster-General.

Cleansing of
quays &c.

119. The Trustees may make such provision as they from time to time think fit for the cleansing of the quays harbours piers and property of the Trustees by their own servants or otherwise and the Trustees and the corporation or any other public body or person may enter into and carry into effect agreements in that behalf.

Officers may
be appointed.

120. The Trustees may appoint a general manager secretary harbour-master meters and weighers and all other officers authorised by the Harbours Docks and Piers Clauses Act 1847 herewith incorporated.

PART VIII.

RATES AT THE PORT AND HARBOURS.

Repeal of
existing rates
and commence-
ment of new
rates.

121. From and after the commencement of this Act the schedules of rates annexed to and authorised by the Harbour Acts or any of them shall be and are hereby repealed and in

lieu thereof the rates specified in Schedules E F G H and I A.D. 1913.
annexed to and authorised to be levied by this Act shall
commence and be leviable.

122. The rates by this Act authorised to be levied under Schedules E F G H and I shall for all purposes whatsoever be substituted for the rates and duties leviable under the provisions of the Harbour Acts or any of them and the schedules thereto annexed and the said rates shall be held and applied for the purposes and subject to the provisions of this Act.

Rates substituted for rates under Harbour Acts.

123. All rates hereby repealed which at the commencement of this Act may be due or payable to the Trustees under the provisions of the Harbour Acts or any of them may be levied collected sued for and recovered by the Trustees in the same manner as if this Act had not been passed.

Recovery of rates due before repeal.

124. Subject to the provisions of this Act and of Schedule E to this Act annexed the Trustees may levy demand and take for every vessel entering or departing from the port and harbours or using the works and conveniences in or connected with the port and harbours or any of them any sums not exceeding the rates specified in the said Schedule E and all such rates shall be paid by the owner master or other person having charge of such vessel on entering or leaving the port and harbours as the case may be.

Rates on vessels.

125. Subject to the provisions of this Act and of Schedule F to this Act annexed the Trustees may levy demand and take for and in respect of all goods shipped unshipped or transhipped within the port and harbours and for and in respect of the use of the works and conveniences in the said schedule mentioned any sums not exceeding the rates specified in the said Schedule F and all such rates shall be paid by the owner consignee or other person in charge of such goods.

Rates on goods.

126. All goods shipped unshipped or transhipped within the port and harbours and not particularly enumerated in the said Schedule F shall only be liable to rates not exceeding the rates specified in the said schedule on such goods as in the judgment of the Trustees may be nearest in description and value to such unenumerated goods.

Rates on goods not enumerated.

127. On all goods imported into the port and harbours intended for transhipment the rates shall be levied in manner following that is to say in the case of goods imported foreign

Regulating certain rates on river craft &c.

A.D. 1913. for exportation coastwise or by river craft the rate shall be paid at import only in the case of goods imported coastwise for exportation foreign the rate shall be paid at export only in the case of goods imported coastwise for exportation coastwise the rate shall be paid at import only in the case of goods imported coastwise for exportation by river craft the rate shall be paid at import only in the case of goods imported by river craft for exportation coastwise or foreign the rate shall be paid at export only and in the case of goods imported by river craft for exportation by river craft the rate shall be paid at import only Provided that in the course of transshipment the goods so imported shall not be removed from the quays except for the purpose of being so transhipped directly from one ship to the other.

Rates for
graving
docks.

128. Subject to the provisions of this Act and of Schedule G to this Act annexed the Trustees may levy demand and take for every vessel entering or using any of the graving docks within the port and harbours any sums not exceeding the rates specified in the said Schedule G and all such rates shall be paid by the owner master or person in charge or possession of the vessel in respect whereof such rates are payable and the same so far as from time to time incurred shall be payable on demand of the Trustees or the collector.

Rates for
cranes.

129. Subject to the provisions of this Act and of Schedule H to this Act annexed the Trustees may levy demand and take for and in respect of the use of cranes at the port and harbours any sums not exceeding the rates specified in the said Schedule H and all such rates shall be paid by the owners or persons in charge of goods lifted.

Payment by
owner &c.
of vessel
instead of
owner of
goods &c.

130. If the person liable for the rates and duties leviable under the sections of this Act whereof the marginal notes are respectively "Rates on goods" and "Rates for cranes" neglects or refuses to pay the same the owner master or other person in charge or possession of the vessel in or from which goods are lifted may pay the same and thereupon the person so paying shall be entitled to hold or take possession of the goods until the same rates and duties and all reasonable charges which he incurs in holding or taking possession thereof are paid by or on behalf of the owner thereof.

Rates for
sheds,

131. Subject to the provisions of this Act and of Schedule I to this Act annexed the Trustees may levy demand and take for

and in respect of the use of any sheds now existing or hereafter to be constructed or provided within the port and harbours any sums not exceeding the rates specified in the said Schedule I and all such rates shall be paid by any person or persons company or body whatsoever using any such sheds. A.D. 1913.

132. The Trustees may enter into agreements from time to time with the persons requiring the use of the timber ponds belonging to or held by the Trustees for payment of such rents or for such other payment in respect of the same as to the Trustees may seem fit. Payment for use of timber ponds.

133. The Trustees may demand levy and take from every passenger or other person landing on or embarking from the Inch Green Pier on board of any ship vessel packet or passenger boat for each time any sum not exceeding twopence. Rates for Inch Green Pier.

134. The Trustees may and are hereby authorised to purchase or construct or hire and employ a tug or tugs or other craft for removing or shifting vessels in and taking vessels into and out of the James Watt wet dock and to levy and charge all vessels entering and using the said wet dock a sum not exceeding twopence per registered ton per shift Provided it shall not be lawful for the Trustees to use or ply for hire any such tug or craft outside but solely within the said wet dock or the tidal harbour adjoining thereto. Charge for tugs.

135. Nothing herein contained shall authorise the Trustees to levy any dues on ships which being bound to or from ports other than Greenock shall load or discharge goods at the Tail of the Bank in the river or on goods there laden into or discharged from such ships. Abolition of dues levied at the Tail of the Bank.

136. The rates by this Act authorised to be levied at the port and harbours shall at all times be charged equally to all persons in respect of the same class or description of vessel or of voyages and the same description of goods and all the said rates payable to the Trustees shall be paid at their office at the port and harbours or at such other place as they may from time to time fix and appoint and for all such rates the Trustees in addition to all other available remedies may retain in security any goods or property of the party or parties liable to the payment of the same and may in default of payment sell such goods or property or any part thereof and apply the proceeds in payment of such rates and the expenses of sale. Rates to be charged equally.

A.D. 1913.

Power to
vary rates
on vessels.

137. The Trustees may from time to time vary all or any of the rates leviable on vessels in such manner as they may think expedient Provided that such rates do not in any case exceed the amount by this Act authorised Provided also that such rates shall at all times be charged equally to all persons in respect of vessels coming from or going to the same port but no variation in such rates shall be made except by a resolution passed by a majority of at least two thirds of the Trustees present at a meeting of the Trustees of which notice specifying the intention to propose such resolution has been duly given.

Charges for
services not
otherwise
provided for.

138. The Trustees may make reasonable charges for all work done services rendered facilities afforded and plant machinery or appliances provided by them for the despatch of business at the port and harbours or the convenience of shipmasters merchants and others concerned with the traffic thereat in so far as such charges are not expressly provided for by this Act.

Debts
charged on
former rates
to be charged
on rates
under this
Act.

139. Subject to the provisions of this Act the rates and revenues of the Trustees arising under this Act shall be liable to and be charged with all the debts claims and demands whatsoever to which the rates and revenues of the existing trustees are at the commencement of this Act subject under the Harbour Acts or any of them.

Claims for
repayment
of rates.

140. Any person claiming the return of the whole or any part of any moneys paid in respect of any rates by this Act authorised or for services rendered shall make such claim and produce all documents and give all information reasonably required in proof of such claim within twelve months from the time of payment and in default thereof the whole sum paid shall belong to the Trustees.

Certain fish-
ing vessels
under stress
of weather
exempt from
rates.

141. Fishing vessels belonging to countries with which for the time being treaties exist exempting from dues and port charges such vessels when forced by stress of weather to seek shelter in the ports or on the coasts of the United Kingdom shall when forced by stress of weather to make use of the port and harbours and not breaking bulk while making use thereof be exempt from rates and dues leviable by the Trustees.

Exemption of
officers of Board
of Trade from
rates.

142. Officers of the Board of Trade being in the execution of their duty shall at all times have free ingress to and passage

and egress on along through and out of the port and harbours by land and with their vessels and otherwise without payment. A.D. 1913.

143. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and also all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to or along and from the port and harbours without payment. Lifeboat crew exempt from tolls.

PART IX.

FINANCIAL.

144. The Trustees may (in addition to the amount of the "A" debenture stock and the "B" debenture stock outstanding at the commencement of this Act) from time to time borrow on the security of the rates by this Act authorised and the other revenues of the port and harbours any sum or sums of money not exceeding in the whole the sum of one hundred thousand pounds for the works by this Act authorised and for the general purposes of this Act and such further sum as may be necessary for paying the costs charges and expenses of this Act and the money which may be so borrowed shall be a debt affecting the port and harbours and the Trustees may grant to the persons advancing or lending the moneys so to be borrowed bonds mortgages or other securities therefor containing an assignation of the said rates and revenues or any part thereof to such persons as a security for the payment of the moneys so to be borrowed with the interest thereof. Power to borrow money.

145. The Trustees may accept and take from any bank or banking company on the security of the said rates and revenues credit on a cash account to be opened and kept with such bank or banking company in the name of the Trustees according to the usage of bankers in Scotland to the extent of the sum which the Trustees are for the time being authorised to borrow or any part thereof Provided that the whole sum due and owing by the Trustees on such cash account and for money borrowed by them on bonds or other securities or vouchers of debt shall never when taken together exceed the amount which the Trustees are authorised to borrow under this Act. Trustees may borrow on credit of cash account.

A.D. 1913.

Repayment
of moneys
borrowed.

146.—(1) The Trustees shall pay off all moneys borrowed by them under this Act within the respective periods following (which periods are herein-after respectively referred to as “the prescribed period”) (that is to say):—

- (A) As to money borrowed for the purposes of the works by this Act authorised within sixty years from the date or dates of borrowing the same;
- (B) As to money borrowed for the general purposes of this Act (other than the payment of the costs charges and expenses of this Act) within thirty years from the date or dates of borrowing the same; and
- (C) As to money borrowed for paying the costs charges and expenses of this Act within seven years from the commencement of this Act.

(2) The Trustees shall pay off all moneys borrowed by them under this Act either by means of equal yearly or half-yearly instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by the other of them and such sum as will be sufficient to make the required payment shall be set apart out of the rates and other revenues of the port and harbours in each year and paid either to the sinking fund or as an instalment as the case may be.

(3) Any money borrowed under the provisions of this Act which shall be discharged otherwise than by means of the sinking fund or instalments may be re-borrowed by the Trustees from time to time if required for the purposes of this Act but money so re-borrowed shall be repaid within the prescribed period applicable to the original loan.

Sinking
fund.

147.—(1) If the Trustees determine to repay by means of a sinking fund any moneys borrowed under the powers of this Act such sinking fund shall be formed or maintained by payment to the sinking fund throughout the prescribed period of such equal annual sums as shall with accumulations at a rate not exceeding three per centum per annum be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed.

(2) Every sum paid into the sinking fund and the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees

are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority the Trustees being at liberty from time to time to vary and transpose such investments.

(3) The Trustees may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that the Trustees shall pay into the sinking fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (A) If and so often as the income of the sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the sinking fund are based any deficiency shall be made good by the Trustees:

(B) If and so often as the income of the sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the sinking fund are based any such excess may be applied towards such annual payments.

(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Trustees in addition to the payments provided for by this Act.

(6) If it appears to the Board of Trade or to the Trustees at any time that the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Trustees to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(7) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon will in the opinion of the Trustees be more than sufficient to repay within the

A.D. 1913. prescribed period the moneys for the repayment of which the sinking fund is formed the Trustees shall with the consent of the Board of Trade reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(8) If the amount in any sinking fund at any time together with the probable accumulations thereon will in the opinion of the Trustees be sufficient to repay the loan in respect of which it is formed within the prescribed period the Trustees shall with the consent of the Board of Trade discontinue the annual payments to such sinking fund.

(9) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Trustees may determine.

(10) The period at which the payments into the sinking fund shall commence shall be not later than one year after the date or dates of borrowing.

Annual
return to
Board of
Trade with
respect to
sinking
fund.

148. The clerk shall within two months after the expiration of each year during which any sum is required to be set apart for a sinking fund under this Act transmit to the Board of Trade a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing the amount which has been invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund or any interest thereof has been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return the clerk shall be liable to a penalty not exceeding twenty pounds. If it appear to the Board of Trade by such return or otherwise that the Trustees have failed to set apart the sum required by this Act for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Act the Board of Trade may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by

decree of either division of the Inner House of the Court of Session in Scotland in a summary application presented for that purpose. A.D. 1913.

149. All bonds mortgages or other securities or vouchers of debt to be granted by the Trustees and all money to be advanced and lent on the security of the rates and revenues of the port and harbours shall be movable or personal estate and transmissible as such. Bonds &c. to be personal estate.

150. The Trustees shall not be bound to see to the execution of any trust whether express implied or constructive to which any bond or other security or voucher of debt to be granted by the Trustees or the money principal or interest thereby secured may be subject and the receipt of the person in whose name any such bond or security or voucher of debt stands in the books of the Trustees shall be a sufficient discharge to the Trustees for any money payable in respect of such bond or security or voucher of debt notwithstanding any trust to which the same or the money thereby secured may then be subject and the Trustees shall not be bound to see to the application of the money paid upon any such receipt. Trustees not bound to see to execution of trusts.

151. If the sum contained in any bond or other security or voucher of debt to be granted by the Trustees shall have become transmitted in consequence of the death bankruptcy or insolvency of any creditor or in consequence of the marriage of a female creditor or by any other means than by a transfer according to the provisions of this Act such transmission shall be authenticated by a declaration in writing in the form or as near as may be in the form of Schedule J to this Act annexed and every such declaration shall state the manner in which and the party to whom such bond or security or voucher of debt shall have been so transmitted and shall be made and signed by some credible person before a sheriff or justice of the peace and such declaration shall be left with the clerk who shall thereupon enter the name of the person entitled to such bond or security or voucher of debt under such transmission in the register of transfers and for every such entry the clerk may demand any sum not exceeding five shillings and until such transmission has been so authenticated and entered no person claiming by virtue of any such transmission shall be entitled to receive any portion of the sum contained in any such bond or security or voucher of debt. Trans- mission of bonds otherwise than by transfer.

A.D. 1913.

Trans-
mission by
marriage
and by
testament-
ary instru-
ments.

152. If such transmission be by the marriage of a female creditor such declaration shall contain a copy of the register of such marriage or other particulars of the celebration or effecting thereof and shall declare the identity of the wife with the holder of such bond or security or voucher of debt and if such transmission has taken place by virtue of any testamentary instrument or by intestacy the probate of the will or the letters of administration or an official copy thereof obtained from any probate court if granted in England or Ireland or a testamentary instrument or testamentary instrument if expedient in Scotland or an official extract thereof shall together with such declaration be produced to the clerk and upon such production in either of the cases aforesaid the clerk shall make an entry of such declaration in the said register of transfers.

Discharge of
bonds &c.

153. Any person entitled to any such bond or security or voucher of debt may discharge the same and his right and interest therein in favour of the Trustees and every such discharge may be written thereon and may be according to the form contained in the Schedule K to this Act annexed or to the like effect and when signed by the granter thereof shall be valid and effectual to all intents and purposes.

Application
of moneys
borrowed.

154. All moneys borrowed by the Trustees in virtue of this Act shall be applied only for the purposes of this Act for which the money is authorised to be borrowed and to which capital is properly applicable.

Closing
transfer
books.

155. The Trustees may close the register of transfers of bonds or assignments and vouchers of debt to be kept in accordance with the provisions of section 78 of the Commissioners Clauses Act 1847 incorporated herewith for any period not exceeding fourteen days before the fifteenth day of May and eleventh day of November in each year and any transfer made during the time when such register is closed shall (as between the Trustees and the transferee but not otherwise) be held as made after that time.

Ranking of
securities.

156. The respective lenders of money borrowed under the provisions of this Act for the purposes of the port and harbours shall be entitled one with another to their respective proportions of the rates and other revenues of the port and harbours according to the respective sums contained in and due under the mortgages assignments bonds or other securities held by

them and to be repaid such sums with interest without any preference one above another by reason of the priority of advancing such moneys or of the dates of any such mortgages assignments bonds or other securities. A.D. 1913.

157. Any person lending or paying money to the Trustees shall not be bound or entitled to inquire as to the observance by them of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of such money or of any part thereof. Protection of lenders from inquiry.

158. The corporation shall in order to ensure the due and regular payment of the interest on the sum of one hundred thousand pounds to be borrowed by the Trustees in virtue of the powers conferred by this Act and the payments to the sinking fund or the instalments of principal and interest for the repayment of the moneys so to be borrowed as aforesaid guarantee the said interest and payments or instalments on the security of the guarantee rate by this Act authorised to be levied by the corporation. Corporation shall guarantee instalments &c. on security of guarantee rate.

159. If in any year ending on the thirtieth day of June after providing for the costs charges and expenses of promoting this Act and for the necessary expenses of working management and maintenance and for the payment of the interest on the "A" debenture stock and the interest on the "B" preferred debenture stock and for the payments into the reserve fund by this Act authorised the rates and revenues of the port and harbours shall be insufficient to meet the interest and payments or instalments referred to in the immediately preceding section of this Act the Trustees shall by writing under the hand of the clerk on or before the first day of September require payment from the corporation of such a sum as may represent the amount of such deficiency as the same shall be certified by the auditor appointed by the sheriff to audit the accounts of the Trustees and the corporation shall within two months after receipt of such requisition pay the amount of such deficiency to the Trustees and in default of payment the Trustees or the person or persons from whom the Trustees have borrowed money may recover from the corporation the amount due as a debt by action in any court of competent jurisdiction and the Trustees shall apply the money so received from the corporation in making up such deficiency. Payment by corporation under guarantee to be made on requisition by Trustees.

A.D. 1913.

Auditor to
certify what
are properly
revenue
payments.

160. In ascertaining whether there be any deficiency in terms of the immediately preceding section of this Act and if so the amount thereof the said auditor shall certify whether the payments made and sums provided for by the Trustees out of the rates and revenues of the port and harbours and appearing in the said accounts are payments or charges that should properly be made out of revenue or whether the same or some part thereof should properly have been made out of the capital moneys of the Trustees and the amount of any payments or other charges which the said auditor shall certify as properly payable out of capital and not out of the rates and revenues of the port and harbours shall not be taken into account in ascertaining the said deficiency (if any) and the amount of any payments or other charges which the said auditor shall certify as properly payable out of the rates and revenues of the port and harbours and not out of capital shall be taken into account in ascertaining the said deficiency (if any) and the said certificate shall be final and conclusive both as to what payments made and sums provided for by the Trustees are properly capital charges and what are properly revenue charges and the amounts thereof.

Guarantee
rate.

161. For the purposes of and in security of the guarantee given by the corporation under the authority of this Act the corporation shall from time to time fix impose and levy such a rate to be termed "the port and harbours guarantee rate" as shall be necessary to pay the amount of the said deficiency and also the costs incurred by the corporation in connexion with the Bill for this Act and their opposition to the Greenock Harbour (Constitution &c.) Bill 1913.

Assessment
and levying
of guarantee
rate.

162. The port and harbours guarantee rate shall be imposed and levied by the corporation on and from the owners and occupiers of all lands and heritages within the burgh according to the valuation roll in force therein for the time being in equal proportions as to the rate per pound imposed that is to say one half by owners and one half by occupiers and that either separately from or along with and in the same manner as the other assessments leviable by the corporation are imposed and levied by them within the burgh and all the powers enactments and provisions contained in the Greenock Corporation Act 1909 and the House Letting and Rating (Scotland) Act 1911 with respect to the levying payment and recovery of

the assessments thereby authorised to be levied on and from the owners or the occupiers of lands and heritages and (except as otherwise provided by the section of this Act the marginal note of which is "Saving section 123 of Greenock Corporation Act 1909") with respect to the limitations exceptions and exemptions from such assessments shall be and are hereby made applicable to the levying payment and recovery of the port and harbours guarantee rate by this Act authorised and except as aforesaid the limitations exceptions and exemptions therefrom in the same manner as if that rate had been authorised to be levied under the authority of the said Acts of 1909 and 1911.

A.D. 1913.

163. For the purposes of the port and harbours guarantee rate and of any payment to be made by the corporation to the Trustees in respect thereof the provisions of section 132 (Adoption of Burgh Police (Scotland) Act 1903 Power to borrow temporarily) of the Greenock Corporation Act 1909 shall apply and the corporation may provide temporarily for any such payment in accordance with the provisions of section 49 (Power to borrow temporarily) of the Burgh Police (Scotland) Act 1903.

Power to corporation to borrow temporarily.

164. Subject to the provisions of this Act the "A" debenture stock shall be and continue valid and available for all the purposes thereof and for and against all parties as if this Act had not been passed and shall continue to bear interest at the rate of three pounds ten shillings per centum per annum payable half-yearly on such days in each year as the Trustees shall from time to time appoint but nothing in this Act contained shall be held to authorise the Trustees to create or issue any part of the "A" debenture stock authorised to be created and issued by the Act of 1888 not so created and issued at the commencement of this Act.

"A" debenture stock and rates of interest thereon.

165. From and after the commencement of this Act the "B" debenture stock amounting to one million one hundred and two thousand six hundred and eighty-seven pounds nineteen shillings and elevenpence shall consist of two portions namely three hundred and sixty-seven thousand five hundred and sixty-two pounds thirteen shillings to be called Greenock Harbour "B" preferred debenture stock and seven hundred and thirty-five thousand one hundred and twenty-five pounds six shillings

"B" debenture stock to consist of two portions.

A.D. 1913. and elevenpence to be called Greenock Harbour "B" deferred debenture stock but save as to the amount of interest and subject always to the provisions of this Act such portions of debenture stock shall continue to confer the same rights and privileges as the "B" debenture stock.

Rates of interest on "B" preferred and "B" deferred debenture stocks.

166.—(1) That portion of the "B" debenture stock to be called the Greenock Harbour "B" preferred debenture stock shall bear interest at the rate of four pounds per centum per annum payable half-yearly on such days in each year as the Trustees from time to time appoint Provided that subject to the provisions of this Act if in any half-year there is not revenue available for payment of the full amount of interest on the "B" preferred debenture stock for that half-year the deficiency shall be made good out of the surplus revenues of subsequent half-years and such deficiency shall be payable to the persons who are registered as the holders of the "B" preferred debenture stock at the time at which interest is payable for such subsequent half-years.

(2) The holders of that portion of the "B" debenture stock to be called the Greenock Harbour "B" deferred debenture stock shall receive by way of interest any balance of the rates to be levied under this Act and the other revenues of the port and harbours in each year in accordance with the provisions of the section of this Act the marginal note of which is "Application of revenue" and such interest shall be paid half-yearly or yearly on such day or days in each year as the Trustees may from time to time appoint and shall be paid equally to all holders of "B" deferred debenture stock in proportion to the amount of their holdings of the said debenture stock.

Allocation of "B" debenture stock.

167. Each holder of "B" debenture stock shall on and after the commencement of this Act be entitled to and there shall be allocated to him in substitution for the amount of "B" debenture stock previously held by him "B" preferred debenture stock and "B" deferred debenture stock in the following proportion as nearly as may be practicable (that is to say) For every one hundred pounds of "B" debenture stock held by him thirty-three pounds six shillings and eightpence of "B" preferred debenture stock and sixty-six pounds thirteen shillings and fourpence of "B" deferred debenture stock Provided that the amount of "B" debenture stock shall not by reason of the

provisions of this section be increased above the amount of one million one hundred and two thousand six hundred and eighty-seven pounds nineteen shillings and elevenpence. A.D. 1913.

168. Any fraction of one pound of "B" preferred debenture stock and "B" deferred debenture stock resulting from the allocation of such stock in pursuance of the provisions of this Act may in whole or in part at the option of the Trustees be satisfied by a cash payment as nearly as possible equivalent to the nominal value of such fraction. Fraction of pounds.

169. On the commencement of this Act all arrears of interest on the "B" debenture stock then due and owing or accrued shall be cancelled and extinguished and the Trustees shall be discharged from all liability in respect thereof. Cancellation of arrears of interest on "B" debenture stock.

170. The Trustees shall so soon as reasonably may be after the commencement of this Act close the register of the "B" debenture stock at and for such time and do all such other acts and things as shall be necessary or proper for giving effect to the provisions of this Act for the allocation of "B" debenture stock into "B" preferred debenture stock and "B" deferred debenture stock. Trustees to execute provisions of Act.

171. Trustees executors or administrators curators guardians and all persons empowered under section 7 of the Lands Clauses Consolidation (Scotland) Act 1845 are hereby expressly authorised to hold the "A" debenture stock and to accept and hold the "B" preferred debenture stock and the "B" deferred debenture stock allocated to them under the provisions of this Act and may hold dispose of or otherwise deal with the harbour stocks in all respects as they might have held disposed of or otherwise dealt with the harbour securities or the "B" debenture stock and the provisions of all deeds wills or other dispositions empowering them to acquire hold dispose of or otherwise deal with the harbour securities shall apply in the case of future investments to "A" debenture stock. Trustees &c. to hold and accept harbour stocks.

172. No holder of any portion of the harbour stocks shall have any priority or preference over any holder of the same class of stock by reason of the creation or issue or allocation of such portion of stock before the creation or issue or allocation of any other portion of stock. No priorities as among holders of same class.

A.D. 1913.

Incidents of
stock.

173. The harbour stocks shall be and shall have all the incidents of movable or personal estate and the Trustees shall not be bound to take notice of or see to the execution of any trust whether express implied or constructive to which any portion of the harbour stocks may be subject.

Register of
stock.

174.—(1) The Trustees shall keep books (herein-after called “the stock register”) in which shall be entered the names and addresses of the holders from time to time of the harbour stocks and the amounts held by them.

(2) The stock register shall be accessible for inspection at all reasonable times to holders of the harbour stocks without charge.

Stock re-
gister to be
evidence.

175. The stock register shall be evidence of all matters therein entered under the provisions of the Act of 1888 and this Act.

Certificates
of stock.

176.—(1) The Trustees shall deliver to each holder of each class of the harbour stocks a certificate stating the amount held by him and such certificates shall be admitted in all courts as *prima facie* evidence of the title of such holder his executors administrators successors or assignees to the sum therein specified and any such certificate may be in the Form A of Schedule L to this Act annexed or to the like effect.

(2) If any such certificate be worn out or damaged then the same may on the production thereof be cancelled and a similar certificate may be given to the holder of the stock therein specified or if any such certificate be lost or destroyed then on proof thereof to the satisfaction of the Trustees a similar certificate may be given to the holder of the stock specified in the certificate so lost or destroyed and in either case a due entry of the substituted certificate shall be made in the stock register.

Mode of
transfer of
stock.

177.—(1) The harbour stocks shall be transferable by deed which may be in the Form B of Schedule L to this Act annexed or to the like effect but the Trustees shall not be bound to register any transfer except on production of the certificate relating to the stock to be transferred or on proof to the reasonable satisfaction of the Trustees that such certificate has been lost or destroyed.

(2) The deed of transfer when duly executed shall be delivered to and kept by the Trustees who shall cause an entry thereof to be made in a book to be called the register of transfers and a new certificate or certificates for the stock transferred shall be issued in exchange for the old certificate which shall be cancelled. A.D. 1913.

178.—(1) The register of transfers may be closed during such time (not exceeding twenty-one days) immediately preceding each half-yearly or yearly payment of interest on the harbour stocks as may be directed by the Trustees. Closing
register of
transfers.

(2) The persons who on the day after such closing are inscribed in the stock register as holders of stock shall as between them and their transferees of any stock be entitled to the interest then next payable on such stock.

179.—(1) The executors or administrators of a deceased holder of harbour stocks shall be the only persons recognised as having any title to the stock of such holder or any interest therein. Trans-
mission of
stock.

(2) Any person becoming entitled to any stock in consequence of the death bankruptcy or insolvency of any holder or otherwise than by transfer of the stock shall produce such evidence of his title as may reasonably be required by the Trustees.

(3) The Trustees shall not be required to allow any executors or administrators to transfer any harbour stock until the confirmation probate or letters of administration has been left with the Trustees for registration.

180. If two or more persons are registered as joint holders of any of the harbour stocks the first person named in the stock register may give effectual receipts for any interest on such stock unless notice to the contrary shall have been given to the Trustees by any other joint holder. Receipts
of joint
holders for
interest.

181. It shall be lawful for the Trustees at any time after the commencement of this Act upon giving six months notice in writing to the holders of "A" debenture stock or any part thereof to redeem and pay off at par all or any part of such stock and in lieu thereof it shall be in the option of the Trustees to create and issue either "A" debenture stock at the same [or a lower rate of interest or "B" preferred debenture Powers to
redeem and
re-borrow.

A.D. 1913. stock and "B" deferred debenture stock in the proportion of thirty-three pounds six shillings and eightpence to sixty-six pounds thirteen shillings and fourpence of an amount equivalent to the amount of stock so paid off and so from time to time and any moneys so re-borrowed shall rank *pari passu* with the "A" debenture stock or the "B" preferred debenture stock and the "B" deferred debenture stock as the case may be.

Fees.

182. Fees not exceeding those specified in Schedule M to this Act annexed may be taken by or on behalf of the Trustees in the cases therein mentioned and the same shall be applied to the general purposes of their undertaking.

Reserve
fund.

183. From and after the expiration of a period of seven years from the commencement of this Act the Trustees may if they think fit after providing for their working management and maintenance expenses the repair and maintenance of the works including the works by this Act authorised the payment of interest on the "A" debenture stock and the payment of interest on the "B" preferred debenture stock set apart annually as a reserve fund out of the rates and revenues of the port and harbours to be received by them under the authority of this Act a sum not exceeding one thousand pounds which reserve fund shall from time to time be applied by the Trustees in their discretion for renewals or to meet and provide against risks and losses by injury to or destruction of works other than ordinary wear and tear or to defray such claims of compensation or reparation consequent upon accidents or damages sustained that may be legally competent against the Trustees or for any other lawful purpose duly sanctioned by the Trustees at any meeting specially called for that end and the Trustees may invest the moneys so set apart when the same are not required in such way and manner as they may deem expedient and accumulate the interest thereof with the principal Provided always that the Trustees shall keep a special account applicable to such reserve fund which shall be balanced annually and that the said fund shall never be allowed to accumulate so as to exceed at any time the sum of ten thousand pounds.

Sale of
superfluous
lands.

184. Notwithstanding the provisions of the Lands Clauses Consolidation (Scotland) Act 1845 with respect to the sale of superfluous lands but subject to the terms and conditions of any deed or other instrument affecting the same the Trustees

may sell and dispose of all lands and other subjects acquired by them which are not required for the purposes of their undertaking and shall apply the purchase money arising from such sales to the general purposes of the port and harbours to which capital is properly applicable. A.D. 1913.

185. The Trustees shall apply the rates to be levied under this Act and the other revenues of the port and harbours in manner and order following and not otherwise (namely):— Application of revenue.

First In providing for the costs charges and expenses of promoting this Act and for the expenses of and incidental to the working and management of the port and harbours including the raising levying and recovering the rates and revenues of the port and harbours and the borrowing of moneys for the purposes of this Act;

Secondly In repairing and maintaining the port and harbours including the works by this Act authorised;

Thirdly In providing for the interest on the "A" debenture stock;

Fourthly In providing for the interest on the "B" preferred debenture stock;

Fifthly In setting aside annually a sum not exceeding one thousand pounds in accordance with the provisions of the section of this Act whereof the marginal note is "Reserve fund";

Sixthly In providing for the interest on and for the payments to the sinking fund or the instalments of principal and interest for the repayment of the sum of one hundred thousand pounds to be borrowed by the Trustees under this Act or such part thereof as may from time to time be so borrowed;

and any balance thereof shall be paid to the holders of the "B" deferred debenture stock by way of interest thereon in proportion to their respective holdings of the said stock.

186. From and after the commencement of this Act the powers functions rights and duties of the judicial factor appointed under the powers of the Act of 1880 and the Act of 1895 in or over the port and harbours and the rates and revenues thereof shall absolutely cease and determine and the said judicial factor shall be discharged from his said office and thereupon the balance upon his accounts for the current year as the same shall be Powers of judicial factor to cease.

A.D. 1913. instructed by the report of the accountant of the Court of Session shall be paid to him by the Trustees or by him to the Trustees as the case may be and a receipt signed by any three Trustees and the clerk or by the said judicial factor respectively shall be a good and sufficient discharge for such balance.

Provision as
to payment
of interest
accrued at
commence-
ment of
Act.

187. The Trustees shall as soon as may be after the commencement of this Act prepare a revenue account from the beginning of the current financial year of the Trustees up to the commencement of this Act which revenue account shall be certified by the auditor of the accounts of the Trustees and shall include therein the balance to be handed over by the judicial factor to the Trustees or by the Trustees to the judicial factor as the case may be in accordance with the provisions of the immediately preceding section of this Act and shall take into account the outstanding revenue and expenditure accrued and unpaid for the current year up to the commencement of this Act (including in such expenditure a sum not exceeding three thousand pounds on account of the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act) and the Trustees shall upon such revenue account being certified as aforesaid set apart for the holders of the "A" debenture stock registered in the books of the Trustees as holders of the said stock at the commencement of this Act the amount of interest accrued to the commencement of this Act and shall as nearly as may be divide the balance (if any) upon the said revenue account after deducting any costs and expenses incurred by the Trustees in connexion therewith among the holders of the "B" debenture stock registered in the books of the Trustees as holders of the said stock at the commencement of this Act in proportion to their respective holdings.

Appoint-
ment of
judicial
factor.

188. In the event of the Trustees failing at any time to make payment of the interest due at the expiry of any half-year on the "A" debenture stock or the "B" preferred debenture stock it shall be lawful for any holder of the said two stocks or either of them in respect of which default has been made to apply to the sheriff for the appointment of a judicial factor and on any such application the sheriff may by order in writing after hearing the parties appoint some person to receive the whole or a competent part of the rates and revenues of the port and harbours until all the arrears of interest on the "A" debenture stock and the "B" preferred debenture stock together with all costs

including the charges of receiving the said rates and revenues A.D. 1913.
be fully paid and upon such appointment being made all such
rates and revenues shall be paid to and received by the person
so appointed and the money so received shall be so much money
received by or to the use first of the holders of "A" debenture
stock and secondly of the holders of "B" preferred debenture
stock and so soon as the full amount of any interest in arrear
in respect of the "A" debenture stock and the "B" preferred
debenture stock and costs has been so received the power of
such judicial factor shall cease.

PART X.

BYELAWS AND REGULATIONS.

189. In addition to the powers of making byelaws con- Additional
tained in the Harbours Docks and Piers Clauses Act 1847 the byelaws.
Trustees may subject to the provisions of this Act from time
to time make such byelaws as they shall think fit for all or
any of the following purposes (that is to say):—

For preventing and removing obstructions or impediments
within the port and harbours and at the harbours docks
piers and other works ;

For berthing or removing vessels lying in any part of the
port and harbours regulating omnibuses coaches and other
carriages and the wages conduct and behaviour of porters
carters hackney coachmen boatmen lumpers jobbers steve-
dores and others resorting to the harbours quays docks or
other works and for prohibiting persons from acting as
such within the port and harbours without previously
obtaining a licence to that effect from the corporation ;

For regulating the management and superintendence of the
port and harbours and of the works constructed and to
be constructed for the improvement thereof and of the
harbour lights palls and landfasts placed thereon ;

For regulating the conduct of the owners masters and
crews of vessels propelled by steam or other mechanical
power with regard to the rate of speed at which they
may proceed within the port and harbours the keeping
the advertised times of sailing the taking on board and
landing or putting out passengers and the towing of
vessels and the size and number of vessels towed at
one time in one train ;

A.D. 1913.

For regulating the conduct of boatmen and others in landing passengers from and putting them on board of all vessels including vessels propelled by steam and the sufficiency of the boats employed for that purpose;

For regulating the conveyance of rafts of timber and the discharge and removal of timber within the port and harbours;

and the byelaws and regulations to be so made by the Trustees shall be published in the manner prescribed by the Harbours Docks and Piers Clauses Act 1847 and shall be observed under penalties not exceeding the sum of five pounds for each offence besides such damages as the case may infer. Provided always that no such byelaw or regulation shall come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

Byelaws of
pilot board
to be en-
forceable
under
penalty.

190. All byelaws and regulations whether made or to be made by the board for licensing pilots for the safe conduct of vessels in the river under the authority of the Clyde Navigation Consolidation Act 1858 shall after the commencement of this Act be enforceable under a penalty not exceeding five pounds for any breach of the said byelaws and regulations and under pain of poinding or imprisonment as prescribed in section 141 of the said Act.

Harbour-
master to be
an officer
under section
142 of Clyde
Navigation
Consoli-
dation Act.

191. The harbour-master for the time being shall be and is hereby constituted one of the officers empowered by section 142 of the Clyde Navigation Consolidation Act 1858 to enforce or to aid in enforcing the byelaws and regulations of the pilot board authorised by the said Act.

Provision as
to Pilotage
Act 1913.

192. The sections of this Act of which the marginal notes are respectively "Byelaws of pilot board to be enforceable under penalty" and "Harbour-master to be an officer under section 142 of Clyde Navigation Consolidation Act" shall only remain in force until the same are superseded by a pilotage order made under the provisions of the Pilotage Act 1913.

Regulations
for graving
docks.

193. The regulations set forth in Schedule N to this Act annexed shall be enforced respecting the graving docks for the time being belonging to the Trustees and the Trustees may enforce the same in the same manner and to the same effect as

A.D. 1913.

if the said regulations were byelaws made by them under the Harbours Docks and Piers Clauses Act 1847 and this Act or either or both of them and were confirmed and allowed as therein required but the Trustees may from time to time if and as they think fit revoke amend or add to those regulations or any of them such revocation amendment or addition before coming into force to be allowed and confirmed as provided by the said Act of 1847.

PART XI.

POLICE.

194. Whereas by the Greenock Corporation Act 1909 police jurisdiction and police powers were conferred on the magistrates of the burgh within the police boundaries of the burgh as defined by that Act which boundaries include the port and harbours and the chief constable and constables appointed and acting under the said Act were declared to be the chief constable and constables within the port and harbours in conformity with the Act of 1866 and all the rights powers privileges and duties conferred and imposed by the said Act of 1909 on the chief constable and constables were to be possessed and performed by them within the port and harbours the following provisions therefore shall have effect (that is to say) The whole police jurisdiction powers and authorities conferred on the magistrates of the burgh by the said Act of 1909 so far as within the port and harbours shall be the jurisdiction powers and authorities conferred on the said magistrates within the port and harbours under this Act and all the police provisions and all jurisdiction and power for the trial and punishment of offences and the whole mode of procedure for such purposes contained in the said Act of 1909 and the Acts therewith incorporated shall be applicable to the port and harbours and shall be exercised and followed by the said magistrates and officers of police courts and other officers and by the chief constable and constables acting under this Act as fully as if the provisions before referred to were embodied in this Act and all offences under this Act or the Acts incorporated herewith or under any byelaws adopted or to be made under this Act or the Acts incorporated herewith shall and may be tried under the authority of this Act in the same way and manner in all respects as if they were police offences under the said Act of

Police
jurisdiction
within port
and harbours
not to be
affected.

A.D. 1913. 1909 Provided always that nothing in this Act contained shall be held to affect any existing jurisdiction or power of the sheriff within the port and harbours.

Police of
burgh to be
police under
Act.

195. The chief constable and constables appointed and acting under the Greenock Corporation Act 1909 shall be the chief constable and constables within the port and harbours for the purposes of this Act.

Trustees to
fix number
of con-
stables.

196. The Trustees shall in concert with the corporation from time to time fix the number of constables to be employed in the execution of this Act and the salaries or wages to be paid to such constables.

Trustees to
pay for
harbour
police.

197. The Trustees shall pay to the corporation for the services of the chief constable and constables employed within the port and harbours such sum as shall correspond with the cost of the services rendered including therein a reasonable and fair proportion of the general expenses of the police establishment and if any difference or dispute shall arise between the Trustees and the corporation as to the number of constables to be employed as aforesaid or as to the cost of the services rendered such dispute shall be settled and determined by the award of the sheriff substitute for the time being of the county of Renfrew resident at Greenock who is hereby appointed sole umpire between the parties.

Application
of penalties.

198. All fines forfeitures and penalties imposed by or under the authority of this Act or of any byelaws adopted or to be made in pursuance thereof or under the authority of any Act incorporated herewith shall when levied be paid over to the Trustees or their treasurer to be applied for the purposes of this Act.

PART XII.

MISCELLANEOUS.

Restrictions
on berthing
vessels.

199. The Trustees shall not berth or moor vessels on the north side of the River Embankment (6) authorised by the Act of 1880 or the River Embankment No. 1 or the River Embankment No. 4 authorised by the Order of 1882 without the authority of Parliament to be hereafter obtained the objections of the trustees of the Clyde Lighthouses to any application for such authority being reserved and the Trustees shall not berth

or moor vessels at the Wharf No. 3 authorised by the Order of 1882 so as to impede or interfere with the free navigation of the river. A.D. 1913

200. The Trustees shall not dig or carry away any sand or other materials for the works of the Trustees from or out of any of the sandbanks and fishing places now or formerly belonging to the burgh of Dumbarton in the river or in the River Leven. For protection of sandbanks belonging to burgh of Dumbarton.

201. The Trustees may if they think fit make and issue orders for regulating the traffic upon or closing any part or parts of the harbours of the Trustees such order to remain in force for such a time as the Trustees may determine which period of time shall appear on the face of such order and the order shall be issued by advertisement in any daily newspaper published in the burgh and by being affixed to such part or parts of the said harbours as the Trustees may determine at least twenty-four hours before the same shall come into force and any person or persons contravening any of the provisions of such order shall for every such contravention be liable to a penalty not exceeding five pounds. Orders for closing harbours.

202. Whereas an agreement bearing date the eleventh day of March one thousand eight hundred and forty was entered into between William Crawford of Cartsburn Esquire and John Gray merchant in Greenock and the Trustees have acquired the rights and have become subject to the obligations of the said John Gray under the said agreement Therefore the said agreement and all rights and privileges competent under the same to the Trustees and to Mrs. Lilian Macknight Crawford and Captain Robert Arthur Christie Crawford of Cartsburn the successors of the said William Crawford and their successors in the estate of Cartsburn are hereby reserved entire and nothing in this Act contained shall be held or construed to deprive the said Mrs. Lilian Macknight Crawford and the said Robert Arthur Christie Crawford or their successors of any right privilege or exemption possessed or enjoyed by them or to confer upon the Trustees any powers not competent to them at the commencement of this Act in respect of the matters embraced by the said agreement. Agreement as to Cartsdyke Harbour.

203. Every person who shall pick up or obtain possession of any anchor or cable or any boat rope or tackle of any ship or other vessel or any log or logs of timber or any other article Anchors cables &c. found to be deposited.

A.D. 1913. or thing whatever within the port and harbours shall within twenty-four hours thereafter give notice thereof to the Trustees or to the harbour-master and shall deposit the same in such place within such time as they or he may direct and any person who shall fail to give such notice and deposit such articles as aforesaid shall forfeit a sum not exceeding five pounds and the provost or any one of the bailies of the burgh shall have power to fix the amount of salvage to be paid for picking up any of the said articles or things.

Life-saving apparatus. **204.** The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or the apparatus for saving life may either permanently or temporarily and from time to time without payment attach or cause to be attached to any part of the port and harbours spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over any part of the port and harbours.

Provision as to Dellingburn Street. **205.** The corporation shall continue to have the management and control of Dellingburn Street within the burgh as widened under the provisions of the Act of 1872 and the said street shall continue to be vested in the corporation who shall be liable to repair and maintain the same.

Reserving Merchant Shipping and general Acts. **206.** Nothing in this Act contained shall be deemed to exempt the port and harbours or the Trustees from the provisions of the Merchant Shipping Act 1894 or from any general Act relating to merchant shipping harbours or docks or to dues on shipping or on goods carried in vessels now in force or which may be passed during the present or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the rates authorised by this Act.

Crown rights. **207.** Nothing in this Act shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Com-

missioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). A.D. 1913.

208. Notwithstanding the provisions contained in the section of this Act of which the marginal note is "Crown rights" or in any public Statute His Majesty and His lessees for their respective interests may work any minerals belonging to the Crown under or adjacent to the lands and works of the Trustees even though such working may lower the surface or endanger the Trustees' works unless the Trustees shall give notice requiring any minerals to be left unworked and shall pay compensation therefor in terms of the Railways Clauses Consolidation (Scotland) Act 1845 but without reference to any "prescribed distance" which notice they shall be entitled to give in the case of Crown minerals required for the support of their lands or works. Crown
minerals.

209. Nothing in this Act contained with reference to any consent by the Board of Trade shall be deemed to alter prejudice or affect any existing legal right of the Trustees under any Crown grants heretofore made. Saving rights
of Trustees
under Crown
grants.

210. Nothing in this Act contained shall alter or affect in any way the provisions of section 123 (Saving for piers and harbours of Greenock) of the Greenock Corporation Act 1909 and notwithstanding anything in that section contained the port and harbours guarantee rate which the corporation are by this Act authorised to impose and levy shall be payable by the Trustees in respect of the port and harbours as defined by this Act in so far as the same are situate within the burgh. Saving
section 123
of Greenock
Corporation
Act 1909.

211. If any land to the seaward of the lands by the Act of 1867 and by the Act of 1880 respectively authorised to be embanked or reclaimed shall at any time after the execution of any works under the authority of those Acts have become or shall become raised in height or reclaimed whether gradually or imperceptibly or otherwise so as to be above the line of ordinary high-water mark instead of below that line (as all land to the seaward of the lands so authorised to be reclaimed at the date of the passing of the said Acts was) the Trustees shall not by virtue of the ownership of any lands which by the said Acts they were empowered to reclaim have any estate right or interest in or to the land so raised in height or reclaimed by reason that Saving of
rights as to
past and
future
accretions.

A.D. 1913. such raising or reclamation has been gradual or imperceptible or has been either wholly or partially caused by the works by the said Acts respectively authorised or otherwise but the right and title to the soil and freehold of such land when so raised or reclaimed shall continue vested in the King's Majesty or in such other corporation or person as is at the commencement of this Act entitled to the same and as if the same had continued as the same was at the passing of the said Acts subject to the flow and reflow of the ordinary tides.

Saving of
rights and
jurisdictions.

212. Nothing in this Act contained shall extend or be construed to extend or take away alter abridge lessen or encroach upon any jurisdiction or power of the corporation or of the Commissioners of the Northern Lighthouses and also saving and reserving to the corporation of the city of Glasgow the trustees of the Clyde Navigation the trustees of the Clyde Lighthouses and the bailie of the river and pilot board of the river and firth of Clyde and to the corporation of the city of Glasgow as port local authority of the port of Glasgow under the Order dated the seventh day of August one thousand nine hundred and three of the Local Government Board for Scotland constituting the said corporation as the local authority for the burgh of Glasgow in terms of the Public Health (Scotland) Act 1897 the port local authority of the port of Glasgow all rights and privileges which they have and possess in and upon the river or firth of Clyde and to them and to the corporation Sir Michael Hugh Haw Stewart Baronet and his heirs and successors in the estate of Greenock Captain Robert Arthur Christie Crawford of Cartsburn and his heirs and successors in the estate of Cartsburn and Duncan Darroch Esquire of Gourock and his heirs in the estate of Gourock and to all other lords of baronies and to all bodies politic or corporate all their legal rights estates and interest in the premises in so far as the same may not be inconsistent with the powers and provisions of this Act and nothing herein contained shall hurt or prejudice the charter granted to the town of Greenock in the year one thousand seven hundred and fifty-one by the deceased Sir John Shaw of Greenock Baronet nor the feu contract betwixt John Shaw Stewart Esquire and the magistrates and council of Greenock dated in the year one thousand seven hundred and seventy-two or any rights privileges or dues thereby conferred or thence arising so far as consistent with the provisions of this Act.

213. The Trustees shall pay to the committee of bondholders of the port and harbours of Greenock the costs charges and expenses incurred by the said committee in promoting the Greenock Harbour (Constitution &c.) Bill 1913 and in opposing the Bill for this Act and also the costs charges and expenses of the trustees of the Royal Liver Friendly Society in opposing the Bill for this Act Provided that such sum as the Trustees shall pay as aforesaid together with the costs charges and expenses incurred by the existing trustees in opposing the Greenock Harbour (Constitution &c.) Bill 1913 promoted by the said committee shall be deemed to be part of the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act and shall be subject to the provisions of this Act as to borrowing and repayment of borrowed money or otherwise which are applicable to the said last-mentioned costs charges and expenses All such costs charges and expenses as aforesaid shall be taxed by the taxing officer of the House of Lords or of the House of Commons or by the auditor of the Court of Session in Scotland.

A.D. 1913.

Costs
incurred by
bondholders
committee
&c.

214. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid out of the rates by this Act authorised to be levied and the other revenues of the port and harbours or the moneys authorised to be borrowed under the authority of this Act.

Expenses of
Act.

A.D. 1913.

SCHEDULES referred to in the foregoing Act.SCHEDULE A.PART I.REPEAL OF ACTS AND ORDERS.

Acts.	Title of Acts and Orders.	Extent of Repeal.
27 & 28 Vict. c. xciii.	The Greenock Harbour Order 1864 confirmed by the Pier and Harbour Orders Confirmation Act 1864.	The whole Order.
29 & 30 Vict. c. clvi.	The Greenock Port and Harbours Act 1866.	The whole Act except section 59 (As to avenues to the warehouses).
30 Vict. c. xxxv.	The Greenock Port and Harbours Act 1867.	The whole Act.
31 & 32 Vict. c. xlvii.	The Greenock Harbour Order 1868 confirmed by the Pier and Harbour Orders Confirmation Act 1868 (No. 2).	The whole Order.
35 & 36 Vict. c. lxxi.	The Greenock Harbour Act 1872	The whole Act.
43 & 44 Vict. c. clxx.	The Greenock Harbour Act 1880	The whole Act.
45 & 46 Vict. c. lviii.	The Greenock Harbour Order 1882 confirmed by the Pier and Harbour Orders Confirmation (No. 2) Act 1882.	The whole Order.
47 Vict. c. xvi.	The Greenock Harbour Act 1884	The whole Act.
50 & 51 Vict. c. lxxiv.	The Greenock Harbour Order 1887 confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1887.	The whole Order.
51 & 52 Vict. c. cxiii.	The Greenock Harbour Act 1888	The whole Act.
58 & 59 Vict. c. cv.	The Greenock Harbour Act 1895	The whole Act.

PART II.

A.D. 1913.

SECTION 59 OF ACT OF 1866 EXCEPTED FROM REPEAL.

And whereas it is enacted by the fourth recited Act that when the warehouses thereby authorised should be built and erected on the shore-ground in front of the breasts of the harbour thereby authorised being the East India Harbour the following lanes each of twenty feet in breadth should be left and kept open at all times at the back of the said warehouses and sheds viz.: one lane on the north side of the feus then possessed by Robert Lee John Dunlop and others to begin east at an entrance to be made into the said harbour at Delingburn Bridge and end west at an entrance to be made into the said harbour at Virginia Street and another lane to begin east at the said entrance from Virginia Street and end west at an entrance to be made into the said harbour between McGilp's and Thomas Ewing's tenements opposite to Archibald Campbell's tenement and that the lane of sixteen feet in breadth at the back of the cellars then already built at the old East Quay should be continued and made eastward until it should open into an entrance to the harbour to be made opposite to Archibald Campbell's tenement and that the following entries of eighteen feet wide each for the benefit of the feus on the south side of the said last-mentioned lane and for the convenience of the said warehouses should be left and kept open from that lane to lead northward between the said warehouses to the breasts of the said harbour viz.: two entries to the westward between the entrance to the said harbour at Delingburn Bridge and the entrance from Virginia Street and three entries to the westward between the said entrance at Virginia Street and the said entrance from opposite Archibald Campbell's tenement and that when such warehouses should be built and erected on the shore-ground also mentioned in the fourth recited Act as purchased for behoof of the harbours of Greenock from the Right Honourable Lord Cathcart lying west of and adjoining to an addition therein mentioned as intended to be made to the West Quay of the old harbour and north from Walter Ritchie's feu a lane of twenty feet in breadth should be left and kept open at all times between the said warehouses and Walter Ritchie's feu one end of which lane to begin west at Alan Ker's feu and to lead eastward and open to the West Quay And whereas by the sixth recited Act on the recital that the entrance made into the harbours from the street called Cathcart Street had rendered altogether unnecessary a part of the lane of twenty feet wide by the said fourth recited Act appointed to begin east at the entrance of the harbours from Virginia Street and end west at the entrance into the said harbours between McGilp's and Thomas Ewing's tenements and so much of the said lane as was to the westward of the east side of the feu belonging to A. McGoun and forty-five feet and a half in length

As to
avenues to
the ware-
houses.

A.D. 1913. of the lane of twenty feet wide commencing at and running eastward from Virginia Street was also unnecessary it was enacted that it should and might be in the power of the Trustees under the said Act to sell or dispose of such part of the said lanes making the first offer thereof to the person or persons from whom the property of such lanes was originally acquired or failing them to the person or persons having the property immediately adjoining or contiguous to such lanes or parts thereof and if any dispute should arise about the value of any part thereof so to be sold the same should be determined by a jury to be summoned in manner mentioned in the herein first-recited Act and the money to arise from such sale should be applied towards the building enlarging or improving the harbours and bay of Greenock or docks thereof Be it enacted that the recited provisions so far as now applicable and operative shall remain in force and in particular the lane described in the fourth-recited Act as situate on the north side of the feus then possessed by Robert Lee John Dunlop and others to begin east at an entrance to be made into the East India harbour at Delingburn Bridge and end west at an entrance to be made into the said harbour at Virginia Street and also the lane described in the same Act one end of which is to begin west at Alan Ker's feu and to lead eastward and open to the West Quay shall both be left and kept open as they at present exist and all questions as to the value of such of the other lanes mentioned in the fourth-recited Act as may be sold under the provisions contained in the sixth-recited Act shall be ascertained and determined in manner provided by the Lands Clauses Consolidation (Scotland) Act 1845 for determining the amount to be paid for lands taken under the provisions thereof.

SCHEDULE B.

GREENOCK HARBOUR.

NOMINATION OF STOCKHOLDERS' TRUSTEES.

We [A B] (*here insert name and designation*) and [C D] (*here insert name and designation*) hereby nominate (*here insert name and designation of candidates*) for election as stockholders' trustees.

Given under our hands this day of

A B

C D

To [] clerk to the Trustees of the port and
harbours of Greenock.

A.D. 1913.

SCHEDULE D.

REGULATIONS FOR TRANSIT SHEDS.

1. When any vessel that will require a transit shed berth is expected to arrive at the port and harbours notice in writing shall be given by the owner agent or consignee of the vessel to the harbour-master and to the superintendent twenty-four hours at least before the vessel is to enter the harbour. The notice must specify the quantity and description of cargo to be discharged and the time when the vessel is expected to arrive. Upon getting such notice the harbour-master shall assign a berth to the vessel if there be one vacant and the vessel may immediately on her arrival take up the berth so assigned to her but always subject to the orders of the harbour-master.

2. All vessels entering for transit sheds shall at the time of reporting at the Custom House pay to the Trustees at the rate of one shilling per hundred tons of cargo intended to be discharged.

3. All goods discharged into or placed in such transit sheds shall be piled or stored therein in such manner as the superintendent with the approval of the proper officer of customs and excise shall direct in order that the space in the sheds may be economised as much as practicable and that as much facility as possible may be given for the weighing and removal of the goods.

4. No dangerous goods such as gunpowder dynamite celluloid petroleum and the like shall be placed or stored in the sheds.

5. The sliding-doors of the sheds shall be kept clear for opening and in all cases where practicable a passage of at least three feet shall be left on one side of the shed for the entire length of the pile of goods therein.

6. All goods shall be removed from the sheds within such time and in such manner as the Trustees shall from time to time prescribe and in the event of the goods or any part thereof not being removed within the time so prescribed the consignee or owner thereof shall pay to the Trustees dues at a rate not exceeding twopence per ton for each day that the goods or any part thereof shall not be removed within the time so prescribed and in the event of the goods or any part thereof not being removed within the period of two days after the expiry of the prescribed time the superintendent shall have power at the risk and expense of the consignee or owner to remove and warehouse the same.

7. Where goods may be removed under the section of this Act the marginal note of which is "Power for Trustees to make customs entries on neglect of owner &c." the superintendent is hereby autho-

rised at the risk and expense of the owner or consignee to remove the same (being first duly entered at the Custom House) if not duty-paid goods to a bonded warehouse and if duty-paid goods to a free goods warehouse. A.D. 1913.

8. Where in regard to any goods lying in the transit sheds notice in writing is given in terms of law to the Trustees or the superintendent that such goods are to remain in such sheds subject to a lien for freight or other charges payable to the shipowner the person giving such notice shall specify therein such goods by their marks and numbers or in some other manner sufficient to enable the Trustees or the superintendent easily to identify the goods referred to in the notice and the person giving the notice shall be responsible to the Trustees for the expense of watching the same and shall undertake the risk of the said goods while they remain in the shed subject to the said notice. The times at which dues shall begin to be payable on such goods and when it shall be in the power of the superintendent to remove the same to a warehouse shall be regulated by Articles 6 and 7 of these regulations.

9. The Trustees may at their discretion reduce or altogether remit the transit shed dues under any circumstances which in their judgment may make such reduction or remission reasonable.

10. The Trustees shall not be liable for any loss damage or injury to any goods placed in the sheds arising from fire water or theft or from the removal of the goods by authorised persons.

SCHEDULE E.

RATES ON VESSELS.

CLASS FIRST. (RIVER CRAFT.)

	<i>s.</i>	<i>d.</i>
1. Including all vessels except tug vessels plying within the limits defined by the Cumbræ Heads or the Kyles of Bute on the west and Glasgow or west of the junction of the Union Canal with the Forth and Clyde Canal on the east—per register ton - - - - -	0	1½
2. River craft for shelter using the port and harbours without repairing or breaking bulk—per register ton - - - - -	0	1

NOTE.

- (1) Vessels which have paid rates (inwards) as river craft and afterwards load cargo coastwise or foreign shall pay the difference only between the rate as a coastwise or foreign-going vessel and the rate already paid.

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s. d.

- (2) River craft making Greenock the terminus of their voyage shall be liable in rates for each call.
- (3) River craft which do not commence or terminate their voyage at the port and harbours but have paid the above rates shall not be liable in payment of rates for the returned voyage.
- (4) The above rates on this class are for vessels calling at entering or using the port and harbours and shall not be exigible again on such vessels when leaving for any port within the limits above defined.
- (5) In the case of vessels trading within but not beyond the limits defined by Glasgow or the junction of the Union Canal with the Forth and Clyde Canal on the east and the Mull of Kintyre or the Heads of Ayr including Lochfyne and Lochgilp on the west the net register tonnage upon which rates are leviable shall in no case be deemed for the purposes of rating to be less than forty per cent. of the gross register tonnage of such steam vessels or steam boats.
- (6) Vessels compounding in this class shall not be exempt from further rates in other classes.

CLASS SECOND. (COASTING VESSELS.)

1. Including all vessels other than river craft and tug vessels plying to and from any port in the United Kingdom of Great Britain and Ireland—per register ton - - 0 3 $\frac{3}{4}$
2. Coasting vessels for shelter using the port and harbours without repairing or breaking bulk—per register ton - 0 2

NOTE.

- (1) Any vessel which has paid rates as a river craft or coasting vessel and which afterwards goes to a foreign port is to pay the difference only between the rate for such foreign-going vessel and the rate already paid.
- (2) The above rates on this class are for vessels calling at entering or using the port and harbours and shall not be exigible again on such vessels when leaving for any port within the limits above defined.
- (3) When a coasting vessel shall not commence or terminate her voyage at the port and harbours but shall only call at enter or use the port and harbours on her way to or from Glasgow or any other port on the River Clyde or within the above limits such vessel

s. d. A.D. 1913.

shall be entitled in the same voyage to call at enter and use the port and harbours on return to the original port from whence she started without again paying any rates.

- (4) In the case of vessels trading within but not beyond the limits defined by Glasgow or the junction of the Union Canal with the Forth and Clyde Canal on the east and the Mull of Kintyre or the Heads of Ayr including Lochfyne and Lochgilp on the west the net register tonnage upon which rates are leviable shall in no case be deemed for the purposes of rating to be less than forty per cent. of the gross register tonnage of such vessels.
- (5) Vessels compounding in this class shall not be exempt from further rates in other classes except class first.

CLASS THIRD. (VESSELS FOREIGN.)

RATES ON VESSELS PLYING TO OR FROM FOREIGN PORTS.

First Description of Vessel.—All vessels plying to or from any port in Europe north of Ushant—per register ton - 1 3

Second Description of Vessel.—All vessels plying to or from any port in Europe south of Ushant or to or from any port in the Mediterranean the Black Sea or the Sea of Azov—per register ton - - - - - 1 3

Third Description of Vessel.—All vessels plying to or from any port on the eastern seaboard of British North America—per register ton - - - - - 1 3

Fourth Description of Vessel.—All vessels plying to or from any port on the eastern seaboard of the United States of America north of Cape Hatteras—per register ton - - - 1 3

Fifth Description of Vessel.—All vessels plying to or from any port on the eastern seaboard of the United States of America south of Cape Hatteras or to or from any port in the Gulf of Mexico the West Indian Islands the Carribean Sea and down to and including British Guiana—per register ton - - - - - 1 3

Sixth Description of Vessel.—All other vessels plying to or from any foreign port not included in any of the foregoing descriptions—per register ton - - - - - 1 3

Any vessel which has paid rates as a river craft or coasting vessel and which afterwards goes to a foreign port is to pay the difference only between the rate for such foreign-going vessel and the rate already paid.

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CLASS FOURTH. (EXCEPTIONAL RATES.)

	s.	d.
1. Vessels coming into the port and harbours for the purpose of having boilers or machinery taken out for repair—per register ton - - - - -	1	3
2. Vessels exceeding 4,000 tons net register to take in boilers or machinery—per register ton - - - - -	1	3
3. Vessels not exceeding 4,000 tons net register to take in boilers or machinery—per register ton - - - - -	1	3
4. Vessels built for the foreign trade coming into the port and harbours with boilers and machinery on board to complete fitting out or for overhaul—per register ton -	0	7½
5. Vessels built for the home coasting trade or river craft coming into the port and harbours with boilers and machinery on board to complete fitting out or for overhaul—per register ton - - - - -	0	3¾
6. Sailing vessels coming into the port and harbours to be rigged or fitted out or for overhaul—per register ton -	0	3¾
7. Yachts of all kinds coming into the port and harbours for repairs or to be fitted out—per register ton - - - - -	0	3¾
8. Yachts of all kinds calling for coal stores or water—per register ton - - - - -	0	3¾
9. Vessels foreign in distress having sailed from another port discharging or loading—per register ton - - - - -	1	3
10. Vessels foreign in distress provided they have loaded at the port and harbours on the current voyage—per register ton - - - - -	0	7½
11. Coasting vessels in distress having sailed from another port discharging or loading—per register ton - - - - -	0	3¾
12. Coasting vessels in distress provided they have loaded at the port and harbours on the current voyage—per register ton - - - - -	0	1½
13.—(a) Vessels of all kinds (except vessels foreign) coming into the port and harbours light for the immediate use of the Trustees' graving docks and leaving light immediately after undocking—per register ton - - - - -	0	3¾
(b) Vessels foreign coming into the port and harbours light for the immediate use of the Trustees' graving docks and leaving light immediately after undocking—per register ton - - - - -	0	7½
14. Vessels of all kinds (steamers coaling for a voyage and yachts excepted) calling for stores or water only—per register ton - - - - -	0	1½

	s.	d.	A.D. 1913.
15. Vessels foreign discharging part cargoes—per register ton -	0	7½	—
16. Vessels foreign coming into the port and harbours to load part cargo—per register ton - - - -	0	7½	
17. Vessels foreign calling at the port and harbours to land or embark passengers and their luggage only—per register ton - - - - -	0	2	
18. Tug vessels from other ports coming into the port and harbours with or for vessels or to bunker or for water or stores for each call—per register ton - - - -	0	4	
19. Vessels other than tug vessels carrying cargo of any description shipped at the port and harbours for vessels use or otherwise from one part of the port and harbours to another or to vessels in the river or at or above or below the Tail of the Bank or the Gareloch per voyage —per register ton - - - - -	0	2½	

CLASS FIFTH.

(1) TIME RATES IN ADDITION TO THE RATES BEFORE AUTHORISED.

1. Tug vessels plying to or from the port and harbours for every month or part of a month—per register ton -	2	0
2. Vessels taking in cargo of any description for temporary storage and remaining in the port and harbours for every week or part of a week—per register ton - -	0	2½
3. All vessels except those after-mentioned remaining upwards of one month from date of arrival in the port and harbours time occupied in graving dock excepted thereafter for every week or part of a week—per register ton - -	0	1
4. Vessels driven by steam or other mechanical power under 3,000 tons register coming into the port and harbours to take in their boilers and machinery at the Trustees' cranes and remaining upwards of two and a half months there- after for every week or part of a week—per register ton	0	1
5. Vessels driven by steam or other mechanical power of 3,000 tons register and upwards coming into the port and harbours to take in their boilers and machinery at the Trustees' cranes and remaining upwards of four months thereafter for every week or part of a week—per register ton - - - - -	0	1
6. Vessels coming into the port and harbours to lie up— during the first three months for every week or part of a week from date of arrival—per register ton - -	0	2½
And thereafter for every week or part of a week—per register ton - - - - -	0	5

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(2) MISCELLANEOUS RATES.

1. Registered small craft engaged in fishing within the river	s.	d.
limits—per boat per trip - - - - -	0	6
2. Ditto if remaining in the port and harbours by permission of the harbour-master for domiciliary or curing purposes—per boat per week or part of a week - - - - -	1	6
3. Small craft retailing by permission of the harbour-master potatoes turnips or other vegetables fish fruit or other merchandise—per week or part of a week - - - - -	2	0
4. Licensed boatmen's boats—per annum - - - - -	20	0
5. Unlicensed boats or craft used for purposes of trade business or pleasure not falling under any of the foregoing regulations lying in the port and harbours by permission of the harbour-master—per annum in advance - - - - -	10	0

(3) RATES FOR POLICE AND LIGHTING AND CLEANSING THE QUAYS.

Vessels falling under Class First and under Class Fourth in all cases where the rate does not exceed 2 <i>d.</i> —per register ton -	0	0½
Vessels falling under Class Second and under Class Fourth in all cases where the rate exceeds 2 <i>d.</i> but does not exceed 6 <i>d.</i> —per register ton - - - - -	0	1
Vessels falling under Class Third and under Class Fourth in all cases where the rate exceeds 6 <i>d.</i> —per register ton -	0	2
Vessels charged rates by time For every week or part of a week—per register ton - - - - -	0	1

REGULATIONS.

The Trustees may modify all or any of the rates under the above Schedule (E) and may compound with vessels propelled by steam or other mechanical power.

Coasting vessels driven by steam or other mechanical power which have paid in the aggregate twenty-one shillings per register ton of rates shall be exempt from any further payment for rates during whatever part of twelve current months may be unexpired from the date of the first payment.

The Trustees shall not be liable for damage by overflow of tides or by fire or other casualties happening in the port or harbours.

When the word "loaded" is used unless otherwise defined it shall mean any part of a cargo.

Ballast is not to be held as part of a cargo.

The net register tonnage of tug vessels shall in no case be deemed for the purpose of rating to be less than eighteen per centum of the gross register tonnage of such tugs.

SCHEDULE F.

A.D. 1913.

RATES ON GOODS.

The words "River Craft" "Coasting Vessels" and "Vessels Foreign" in this table refer to the goods articles matters and things following shipped into or unshipped from vessels according to the definition of such vessels herein-before specified.

Description.	River Craft.	Coasting Vessels.	Vessels Foreign.
	s. d.	s. d.	s. d.
Agricultural machines ploughs and harrows each - - - - -	0 2½	0 5	0 10
Ale beer cider perry porter or aerated waters per ton - - - - -	0 2½	0 5	0 10
Alumina per ton - - - - -	0 2½	0 5	0 10
Aluminium per ton - - - - -	0 5	0 10	1 3
Ammoniacal liquor per ton - - - - -	0 2½	0 5	0 10
Arrowroot per ton - - - - -	0 2½	0 5	0 10
Ashes per ton - - - - -	0 2½	0 5	0 10
Asphalte per ton - - - - -	0 1¼	0 2½	0 5
Bacon per ton - - - - -	0 2½	0 5	0 10
Bagging per ton - - - - -	0 2½	0 5	0 10
Bark per ton - - - - -	0 2½	0 5	0 10
Basket ware per ton - - - - -	0 5	0 10	0 10
Bees wax per ton - - - - -	0 5	0 10	1 8
Bellows smiths' each - - - - -	0 2½	0 5	0 5
Bellows small per dozen - - - - -	0 1¼	0 2½	0 2½
Bicycles each - - - - -	0 1	0 2	0 3
Biscuit per ton - - - - -	0 2½	0 5	0 10
Bleaching powder per ton - - - - -	0 2½	0 5	0 10
Boats open each - - - - -	0 6	1 0	2 0
Boats canvas each - - - - -	0 3	0 6	1 0
Boats decked per ton - - - - -	0 2½	0 5	0 10
Bones per ton - - - - -	0 1¼	0 2½	0 5
Bone dust per ton - - - - -	0 1¼	0 2½	0 5
Books per ton - - - - -	0 5	0 10	1 3
Boots and shoes per ton - - - - -	0 2½	0 5	0 10
Borax per ton - - - - -	0 2½	0 5	0 10
Bottles empty per ton - - - - -	0 2½	0 5	0 10
Bran per ton - - - - -	0 2½	0 5	0 10
Brandy per ton - - - - -	0 5	0 10	1 3
Brass per ton - - - - -	0 5	0 10	1 3
Bread per ton - - - - -	0 2½	0 5	0 10
Bricks common fireclay or bath per ton - - - - -	0 1¼	0 2½	0 5
Brimstone per ton - - - - -	0 2½	0 5	0 10
Brooms per hundred - - - - -	0 0½	0 1	0 1
Brushes per dozen - - - - -	0 0½	0 1	0 1
Bulrushes per cwt. - - - - -	0 0½	0 1	0 1
Butter or lard per ton - - - - -	0 2½	0 5	0 10
Cabinet ware per ton - - - - -	0 5	0 10	1 3
Candles per ton - - - - -	0 2½	0 5	0 10
Carriages gigs motor bicycles and other spring carriages 2 wheels each - - - - -	0 5	0 10	1 8

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Description.	River Craft.	Coasting Vessels.	Vessels Foreign.
	s. d.	s. d.	s. d.
Carriages gigs motor cars and other spring carriages 4 wheels each - - -	0 10	1 8	3 4
Carts each - - - - -	0 5	0 10	0 10
Cart carriage or waggon wheels per pair -	0 2½	0 5	0 10
Causeway stones per ton - - - -	0 1¼	0 2½	0 5
Cement per ton - - - - -	0 2½	0 5	0 10
Chaff per ton - - - - -	0 2½	0 5	0 10
Chalk per ton - - - - -	0 1¼	0 2½	0 5
Charcoal per ton - - - - -	0 2½	0 5	0 10
Cheese per ton - - - - -	0 2½	0 5	0 10
Chemical acids per ton - - - -	0 2½	0 5	0 10
Chemical manures per ton - - - -	0 1¼	0 2½	0 5
Chimney cans each - - - - -	0 0¼	0 0½	0 1
Clay per ton - - - - -	0 0½	0 1	0 2½
China clay per ton - - - - -	0 1¼	0 2½	0 5
Clay pipe per ton - - - - -	0 0½	0 1	0 2½
Coals import per ton - - - - -	0 1	0 2	0 2
Coals export whether shipped from a lighter or otherwise per ton - - - -	0 2	0 3	0 4
Coals when put on board vessels for their own consumption or put into lighters within the port and harbours for the use of such vessels (tug vessels belonging to any port on the river being for the purpose of this rate classed as river craft) per ton - -	0 0½	0 1	0 1
Coke per ton - - - - -	0 2½	0 5	0 10
Coal tar per ton - - - - -	0 1¼	0 2½	0 5
Cocoa nuts per hundred - - - -	0 2½	0 5	0 10
Coffee per ton - - - - -	0 2½	0 5	0 10
Confections preserves or sweets per ton -	0 2½	0 5	0 10
Copper ore per ton - - - - -	0 2½	0 5	0 10
Copper new or old per ton - - - -	0 5	0 10	1 3
Cordage per ton - - - - -	0 2½	0 5	0 10
Cork per ton - - - - -	0 5	0 10	1 3
Cork shavings per ton - - - - -	0 2½	0 5	0 10
Cotton per ton - - - - -	0 5	0 10	1 3
Cotton waste per ton - - - - -	0 5	0 10	1 3
Crown glass per ton - - - - -	0 2½	0 5	0 10
Crucibles for brassfounders per dozen -	0 1¼	0 2½	0 2½
Draff per ton - - - - -	0 1	0 2	0 4
Drain pipes per ton - - - - -	0 2½	0 5	0 5
Drugs per ton - - - - -	0 2½	0 5	0 10
Dye stuffs per ton - - - - -	0 2½	0 5	0 10
Dye woods ground per ton - - - -	0 2½	0 5	0 10
Earth or sand for moulding per ton - -	0 2½	0 5	0 10
Earthenware per ton - - - - -	0 2½	0 5	0 10
Eggs per box or chest not exceeding 1 cwt. -	0 1¼	0 2½	0 2½
Eggs per ton - - - - -	0 5	0 10	0 10
Empty casks or packages each - - - -	0 0½	0 1	0 1
Empty casks or packages permitted to remain longer than 24 hours on the quay each per day or part of a day - - - -	0 1	0 2	0 2
Empty stone jars per dozen - - - -	0 1¼	0 2½	0 5
Esparto fibre per ton - - - - -	0 2½	0 5	0 10
Feathers per bag bundle or bale not exceeding 1 ton - - - - -	0 2½	0 5	0 10

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Description.	River Craft.	Coasting Vessels.	Vessels Foreign.
	s. d.	s. d.	s. d.
Felt per ton - - - - -	0 2½	0 5	0 10
Filters each - - - - -	0 1¼	0 2½	0 2½
Fire clay or fire clay goods per ton - - -	0 2½	0 5	0 10
Fish salt per ton - - - - -	0 2½	0 5	0 10
Fish fresh per box not exceeding 2½ cwts. -	0 1	0 2	0 2
Fish fresh per box exceeding 2½ cwts. -	0 1	0 2	0 4
Flax per ton - - - - -	0 2½	0 5	0 10
Flint glass per ton - - - - -	0 2½	0 5	0 10
Flint stones per ton - - - - -	0 1¼	0 2½	0 5
Flour per ton - - - - -	0 2½	0 5	0 10
Fowls per ton - - - - -	0 5	0 10	1 3
Freestones per ton - - - - -	0 1¼	0 2½	0 2½
Fruit green or dried per ton - - - - -	0 2½	0 5	0 10
Furniture per ton - - - - -	0 5	0 10	1 8
Galls per ton - - - - -	0 2½	0 5	0 10
Gin per ton - - - - -	0 5	0 10	1 3
Ginger rough per ton - - - - -	0 2½	0 5	0 10
Grain of all sorts at import or export per ton -	0 2½	0 5	0 10
Grain of all sorts if transhipped into lighters without being landed No additional charge.			
Gravel per ton - - - - -	0 0½	0 1	0 2½
Grease per ton - - - - -	0 1¼	0 2½	0 5
Groceries per ton - - - - -	0 5	0 10	1 3
Grindstones per ton - - - - -	0 2½	0 5	0 10
Guano per ton - - - - -	0 1¼	0 2½	0 5
Gunpowder for ship's use or cargo per ton -	0 2½	0 5	0 10
Granite per ton - - - - -	0 2½	0 3	0 4
Granite crushed or chips per ton - - - -	0 1¼	0 1½	0 2
Hair plasterers' per ton - - - - -	0 2½	0 5	0 10
Hair per ton - - - - -	0 2½	0 5	0 10
Hams per ton - - - - -	0 2½	0 5	0 10
Hay per ton - - - - -	0 1¼	0 2½	0 5
Hemp per ton - - - - -	0 2½	0 5	0 10
Herrings salt per ton - - - - -	0 2½	0 5	0 10
Herrings fresh per box not exceeding 2½ cwts. -	0 1	0 2	0 2
Herrings fresh per box exceeding 2½ cwts. -	0 1	0 2	0 4
Herrings Nova Scotia per box under 56 lbs. -	0 0¼	0 0½	0 1
Hides per ton - - - - -	0 2½	0 5	0 10
Hoofs of cattle per ton - - - - -	0 2½	0 5	0 10
Honey per ton - - - - -	0 2½	0 5	0 10
Hoops hogshead or tierce per 1,000 - - -	0 5	0 10	1 3
Hoops barrel per 1,000 - - - - -	0 2½	0 5	0 10
Hoops firkin per 1,000 - - - - -	0 1¼	0 2½	0 5
Hoops mast or truss per dozen - - - - -	0 0½	0 1	0 2
Hops per ton - - - - -	0 2½	0 5	0 10
Horn and horn tips per ton - - - - -	0 2½	0 5	0 10
Hurleys per ton - - - - -	0 2½	0 5	0 5
Iron or steel :—			
Plate wrought per ton - - - - -	0 2½	0 5	0 10
Boilers machinery and propellers landed from or put on board vessels or steamers per ton - - - - -	0 5	0 10	1 3
Boilers machinery and propellers landed from or put on board vessels or steamers as cargo per ton - - - - -	0 5	0 10	1 3

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Description.	River Craft.		Coasting Vessels.		Vessels Foreign.	
Iron or steel— <i>continued</i> .	s.	d.	s.	d.	s.	d.
Anchors and chains per ton -	0	2½	0	5	0	10
Railway chairs sleepers and tie-bars per ton -	0	2½	0	5	0	10
Bolt bar rail rod &c. per ton -	0	2½	0	5	0	10
Castings per ton -	0	2½	0	5	0	10
Cast iron pipes per ton -	0	2½	0	5	0	10
Scrap and old per ton -	0	2	0	3	0	3
Iron ore per ton -	0	2	0	3	0	3
Pig iron at import per ton -	0	2	0	3	0	3
Pig iron at export per ton -	0	2	0	3	0	3
Jute per ton -	0	2½	0	5	0	10
Kelp per ton -	0	1¼	0	2½	0	5
Laths per ton -	0	2½	0	5	0	10
Lead per ton -	0	2½	0	5	0	10
Leather per ton -	0	5	0	10	1	3
Lime per ton -	0	1¼	0	2½	0	5
Lime stones per ton -	0	1¼	0	2½	0	5
Lime juice per ton -	0	2½	0	5	0	10
Live stock viz. :—						
Asses each -	0	2½	0	5	0	10
Bulls each -	0	2½	0	5	0	10
Calves each -	0	0½	0	1	0	2
Cows each -	0	2½	0	5	0	10
Deer each -	0	2½	0	5	0	10
Goats each -	0	0½	0	1	0	2
Lambs per score -	0	2½	0	5	0	10
Ponies under 52 inches each -	0	2½	0	5	0	10
Horses each -	0	5	0	10	1	3
Mules each -	0	2½	0	5	0	10
Oxen each -	0	2½	0	5	0	10
Pigs each -	0	0½	0	1	0	2
Sheep per score -	0	2½	0	5	0	10
Lobsters and other shell-fish per box under 2½ cwts. -	0	1	0	2	0	2
Lobsters and other shell-fish per box above 2½ cwts. -	0	1½	0	3	0	3
Locomotives per ton -	0	5	0	10	1	3
Magnesite per ton -	0	2½	0	5	0	10
Magnesia per ton -	0	2½	0	5	0	10
Malt per ton -	0	2½	0	5	0	10
Manure per ton -	0	1	0	2	0	3
Marble per ton -	0	5	0	10	1	8
Mats per ton -	0	2½	0	5	0	10
Mattresses not passengers' luggage each -	0	0½	0	1	0	1
Meal of all kinds per ton -	0	2½	0	5	0	10
Melado per ton -	0	2½	0	5	0	10
Milk per barrel butt can or other vessel not exceeding ten gallons -	0	1	0	2	0	4
Milk per barrel butt can or other vessel exceeding ten gallons -	0	2½	0	5	0	10
Mill stones each -	0	2½	0	5	0	10
Molasses per ton -	0	2½	0	5	1	3
Moss litter per ton -	0	2½	0	5	0	10
Mussels per ton -	0	2½	0	5	0	10
Nails per ton -	0	2½	0	5	0	10
Nickel ore per ton -	0	1	0	2	0	3

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Description.	River Craft.		Coasting Vessels.		Vessels Foreign.	
	s.	d.	s.	d.	s.	d.
Nitrate of soda per ton - - -	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$	0	5
Nuts per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Oakum per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Oil per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Oil-cake per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Onions per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Oranges per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Oysters per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Packs hogshead each not exceeding 1 cwt. -	0	0 $\frac{3}{4}$	0	1 $\frac{1}{2}$	0	1 $\frac{1}{2}$
Packs puncheon each not exceeding 1 cwt. -	0	0 $\frac{1}{2}$	0	1	0	1
Packs barrel each not exceeding 1 cwt. -	0	0 $\frac{1}{4}$	0	0 $\frac{1}{2}$	0	0 $\frac{1}{2}$
Paints per ton - - - - -	0	5	0	10	1	3
Parcels boxes or packages not exceeding in weight 56 lbs. each - - - -	0	0 $\frac{1}{2}$	0	1	0	1
Passengers' or seamen's luggage not otherwise charged free.						
Passengers' or seamen's luggage when carried to vessels in the stream or at or above or below the Tail of the Bank which have not paid rates under Schedule E to this Act annexed per package - - - -	0	1	0	2	0	2
Paving or flag stones per ton - - - - -	0	2 $\frac{1}{2}$	0	3	0	4
Pease per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Pepper per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Pianofortes each - - - - -	0	6	1	0	2	0
Phosphate rock per ton - - - - -	0	1	0	2	0	3
Pitch per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Plants shrubs or trees per ton - - - - -	0	5	0	10	1	3
Potatoes per ton - - - - -	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$	0	5
Provisions salted per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Paper per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Rags and paper stuff per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Railway plant per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Rape cake per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Rice per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Riddles per dozen - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Road metal per ton - - - - -	0	1	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$
Rock salt per ton - - - - -	0	1	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$
Ropes old or new per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Rosin per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Rum per ton - - - - -	0	5	0	10	1	3
Sacking per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Sago per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Sails old or new per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Salt per ton - - - - -	0	1	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$
Saltpetre per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Sand per ton - - - - -	0	0 $\frac{1}{2}$	0	1	0	2 $\frac{1}{2}$
Scythes per 100 - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Seeds of all kinds per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Sieves per dozen - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Sheathing paper per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Ship stores of all kinds included in victualling bills free.						
Shovels per dozen - - - - -	0	0 $\frac{1}{2}$	0	1	0	2 $\frac{1}{2}$
Silk raw per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10

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Description.	River Craft.		Coasting Vessels.		Vessels Foreign.	
	s.	d.	s.	d.	s.	d.
Skins seal or calf per 100 - - -	0	2 $\frac{1}{2}$	0	5	0	10
Skins sheep or lamb per 100 - - -	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$	0	5
Slates per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Soap per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Soda per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Soot per ton - - - - -	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$	0	5
Spades per dozen - - - - -	0	0 $\frac{1}{2}$	0	1	0	2 $\frac{1}{2}$
Spirits of turpentine per ton - - -	0	2 $\frac{1}{2}$	0	5	0	10
Spirits not otherwise enumerated or described per ton - - - - -	0	5	0	10	1	3
Starch per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Steel. See Iron.						
Stones macadamising per ton - - -	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$	0	5
Straw per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	5
Succades per box keg or jar not exceeding 1 cwt. - - - - -	0	1	0	2	0	3
Sugar per ton - - - - -	0	2 $\frac{1}{2}$	0	5	1	3
Sugar moulds or syrup jars each - - -	0	0 $\frac{1}{4}$	0	1	0	1
Syrup per ton - - - - -	0	2 $\frac{1}{2}$	0	5	1	3
Tallow per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Tamarinds per box keg or jar not exceeding 1 cwt. - - - - -	0	1	0	2	0	2
Tanners' waste per ton - - - - -	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$	0	5
Tapioca per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Tar per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Tea per ton - - - - -	0	5	0	10	1	3
Tiles drain per 1,000 - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Tiles roofing per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Tin of all kinds per ton - - - - -	0	5	0	10	1	3
Tinware per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Tobacco per ton - - - - -	0	5	0	10	1	3
Tobacco pipes per cubic foot - - - -	0	0 $\frac{1}{2}$	0	1	0	2
Tongues per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Turnips per ton - - - - -	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$	0	5
Tow per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Treacle per ton - - - - -	0	2 $\frac{1}{2}$	0	5	1	3
Turpentine per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Varnish per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Vent linings each - - - - -	0	0 $\frac{1}{4}$	0	0 $\frac{1}{2}$	0	0 $\frac{1}{2}$
Vinegar per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Vitriol per ton - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Vegetables per ton - - - - -	0	5	0	10	1	3
Whalebone per ton - - - - -	0	5	0	10	1	8
Wheelbarrows each - - - - -	0	1	0	1 $\frac{1}{4}$	0	1 $\frac{1}{4}$
Whisky per ton - - - - -	0	5	0	10	1	3
Whiting per ton - - - - -	0	1 $\frac{1}{4}$	0	2 $\frac{1}{2}$	0	5
Wine per ton - - - - -	0	5	0	10	1	3
Wood when floated into the port and harbours from other ports or places per 40 cubic feet - - - - -	0	2 $\frac{1}{2}$	0	5	0	10
Wood viz. :—						
Battens batten ends and boards per 50 cubic feet - - - - -	0	1 $\frac{1}{2}$	0	3	0	5
Birch elm or ash per 50 cubic feet - -	0	2 $\frac{1}{2}$	0	5	0	6
Crate wood crop wood stakes &c. per ton -	0	2 $\frac{1}{2}$	0	5	0	10

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Description.	River Craft.	Coasting Vessels.	Vessels Foreign.
<i>Wood—continued.</i>	<i>s. d.</i>	<i>s. d.</i>	<i>s. d.</i>
Crooked timber of pine or hardwood small per ton - - - - -	0 2½	0 5	0 10
Crooked timber of pine or hardwood large per 50 cubic feet - - - - -	0 5	0 10	0 10
Deals and deal ends per 50 cubic feet - - - - -	0 1½	0 3	0 5
Fire wood per 50 cubic feet - - - - -	0 1½	0 3	0 4
Greenheart and mora per 50 cubic feet - - - - -	0 5	0 10	1 3
Oak and all other kinds of hardwood not specially mentioned per 50 cubic feet - - - - -	0 2½	0 5	0 10
Handspikes per 120 - - - - -	0 6	1 0	1 0
Lancewood spars per 120 - - - - -	0 6	1 0	1 0
Lathwood per 216 cubic feet - - - - -	0 5	0 10	0 10
Oars per 120 - - - - -	0 6	1 0	2 0
Pine per 50 cubic feet - - - - -	0 1½	0 3	0 5
Rickers or boat-hook handles per 120 - - - - -	0 2½	0 5	0 10
Spars not above 6 inches in diameter per 120 - - - - -	1 0	2 0	2 0
Staves—barrel sawn per 1,200 - - - - -	0 6	1 0	1 0
Staves—hogshead St. John's ash per 1,200 - - - - -	1 6	3 0	3 0
Staves—hogshead Quebec red oak per 1,200 - - - - -	1 6	3 0	3 0
Staves—hogshead Quebec white oak per 1,200 - - - - -	1 6	3 0	3 0
Staves—pipe standard per 1,200 - - - - -	3 0	6 0	6 0
Stave billets to be charged double of the rates on the respective kinds of staves.			
Treenails per 1,000 - - - - -	0 5	0 10	0 10
Wedges per 1,000 - - - - -	0 5	0 10	0 10
Wheel spokes per 1,000 - - - - -	0 10	1 8	1 8
Teak per 50 cubic feet - - - - -	0 5	0 10	1 3
Norway staves or palings per 1,200 - - - - -	0 6	1 0	1 0
Wood pulp per ton - - - - -	0 2½	0 2½	0 6
Spoolwood per 50 cubic feet - - - - -	0 2½	0 5	0 10
<i>Wood sold by the weight viz. :—</i>			
Fustic lignum vitæ and logwood per ton - - - - -	0 5	0 10	1 3
Mahogany and rosewood per ton - - - - -	0 5	0 10	1 3
All other kinds per ton - - - - -	0 5	0 10	1 3
Wood ware and utensils per dozen pieces - - - - -	0 2½	0 5	0 10
Wool per ton - - - - -	0 5	0 10	1 8
Yarn per ton - - - - -	0 5	0 10	1 8
Yeast per ton - - - - -	0 2½	0 5	0 10
Yellow metal per ton - - - - -	0 5	0 10	1 3
Zinc per ton - - - - -	0 2½	0 5	0 10
All goods not otherwise enumerated or described may be charged in the option of the Trustees per ton measurement of 40 cubic feet - - - - -	0 5	0 10	1 3
Or per ton weight - - - - -	0 5	0 10	1 3

MISCELLANEOUS RATES AND REGULATIONS.

(1) MISCELLANEOUS RATES.

Goods conveyed by railway trucks to the quays or the works *s. d.*
and removed therefrom without being shipped for use of
quays or works per day or part of a day per ton - 0 1

A.D. 1913.	Goods passing in railway trucks over the rails in the port and harbours without being discharged from or shipped into vessels for use of rails per ton	-	-	-	-	-	-	0	1
	Goods passing in railway trucks over the rails in the port and harbours discharged from or shipped into vessels for use of rails per ton	-	-	-	-	-	-	0	1
	Goods to be charged for use of weighing machines provided the weight stated by the owner or party in charge of the goods be found less than the real weight per ton or part of a ton	-	-	-	-	-	-	0	1½
	Goods when weighed at the request of the sender per ton or part of a ton	-	-	-	-	-	-	0	1
	Coal to be charged for use of coal shoot per ton	-	-	-	-	-	-	0	2

(2) REGULATIONS.

Goods shipped from the port and harbours to vessels in the river or at or below the Tail of the Bank or Gareloch by steamer or otherwise to pay full rates of their class whether river coasting or foreign vessels according to the port to which such vessels are bound.

Goods transhipped in the port and harbours to pay the same rates as if such goods were landed on the quays.

Goods to be charged by gross weight or measurement that is the box barrel or other package is to be included in the weight or measurement.

Goods which have previously paid rates at the port and harbours when landed from vessels which have been put back in distress or for shelter to pay half rates but when rates have not been previously paid then to pay full rates.

Cargo discharged from vessels in distress and allowed by special permission of the harbour-master to remain in the port and harbours during the repairs to vessel to be charged 1s. per ton weight or measurement per week or part of a week when stored in any of the sheds and 3d. per ton when outside in addition to the rates exigible under the previous regulation.

The Trustees shall have power to prevent coals or goods being discharged into carts from railway trucks standing on the quay rails.

No freightable article to be held as ballast.

REGULATIONS FOR THE PAYMENT OF THE RATES ON GOODS INTENDED FOR TRANSHIPMENT.

1. That previous to the goods being discharged or loaded written intimation be given at the harbour dues offices describing the kind of goods intended to be re-shipped the marks and numbers or address on each package and so far as practicable the weight of each also

the name of the vessel by which they are to be exported and accompanied by a declaration that the goods have not changed ownership but are the property of the same party both at import and export. A.D. 1913.

2. That the rates in the case of goods imported foreign for export coastwise or by river craft shall be paid at import only in the case of goods imported coastwise for export foreign shall be paid at export only in the case of goods imported coastwise for export coastwise shall be paid at import only in the case of goods imported coastwise for export by river craft shall be paid at import only in the case of goods imported by river craft for export coastwise or foreign shall be paid at export only and in the case of goods imported by river craft for export by river craft shall be paid at import only Provided that in the course of transhipment the goods shall not be removed from the quays except for the purpose of being so transhipped directly from the one ship to the other.

3. Goods warehoused elsewhere than in the Trustees' warehouses or removed from off the quays except to those warehouses shall be expressly precluded from the benefit of the foregoing regulations.

SCHEDULE G.

RATES FOR THE USE OF GRAVING DOCKS.

Vessels of fifty tons and not exceeding one hundred tons	£	s.	d.
using the dock for not more than two tides	2	17	6
Each additional tide above two tides	0	9	5
Vessels above one hundred tons using the dock for more than two tides:—			
For the first one hundred tons	2	17	6
For each additional fifty tons or part of fifty tons	0	9	5
Each additional tide above two tides:—			
The first one hundred tons	0	9	5
Each additional fifty tons or part of fifty tons	0	1	7
No charge to be less than for two tides.			

RATES TO BE CHARGED FOR PUMPING THE GRAVING DOCK AT ENTRY.

One penny three farthings per register ton on each vessel on entering the graving dock.

The rates on vessels propelled by steam or other mechanical power for use of dock and for pumping to be charged by the ton of gross measurement including the engine room.

The rates on all vessels for use of docks and for pumping to be charged on the gross registered tonnage of such vessel on leaving the dock.

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The tide in which a vessel shall enter the graving dock shall be counted one tide and the tide in which a vessel shall leave the graving dock shall also be counted one tide.

No charge will be made for Sunday New Year's Day or Greenock Fair Saturday unless work is done nor for daily pumping nor for opening and shutting the gates.

Vessels under 50 tons not to have the right to enter if dock should be required for larger vessels.

Yachts (sailing) requiring the dock to be specially pumped to be charged an additional rate of 3*l*.

SCHEDULE H.

RATES FOR USE OF CRANES.

TABLE I.—FOR MASTING AND UNMASTING SAILING VESSELS.

				£	s.	d.
Any vessel not exceeding 200 tons register	-	-	-	2	2	0
Exceeding 200 and not exceeding 400 tons	-	-	-	3	3	0
„ 400	„	600	„	4	4	0
„ 600	„	800	„	5	5	0
„ 800	„	1,000	„	6	6	0
„ 1,000	„	1,500	„	7	7	0
„ 1,500	„	2,000	„	8	8	0
„ 2,000	-	-	-	9	9	0

For lifting in or out a single mast one-third of the foregoing rates to be paid but if more than one mast be lifted in or out the full rate to be paid.

When the same vessel is unmastered and re-mastered the charge shall be one and a half the above rates.

For masting and unmastering vessels driven by steam or other mechanical power the rates will be one-half the above rates.

TABLE II.—FOR FITTING-UP OR REPAIRING VESSELS DRIVEN BY STEAM
OR OTHER MECHANICAL POWER.

	£	s.	d.
For putting on board machinery engines and boilers including fitting-up per contract horse-power	0	3	4
Taking out boilers and machinery for repairs per contract horse-power	0	3	4
Taking out engine for repairs per contract horse-power	0	1	8
„ „ boiler for repairs per contract horse-power	0	1	8
„ „ and replacing boilers and machinery per contract horse-power	0	3	4
Taking out and replacing engine per contract horse-power	0	1	8
„ „ „ boiler per contract horse-power	0	1	8

Or in the option of the persons using the cranes 4s. 6d. per ton weight when a portion of the machinery or boilers only are taken out or put on board these rates to include all necessary use of the cranes for lifting from or to the ship or carriage when fitting-up Water-tanks are to be held as included in the fitting-up rates but all spare propellers or spare machinery lifted to be charged additional. A.D. 1913.

Boilers machinery and other heavy articles shipped as cargo or lifted from or on to the quays or vessels 4s. 6d. per ton.

When two lifts of the same article are made rate and a half to be charged.

In the option of the persons using the crane the following time rates may be charged:—

Cranes of lifting capacity not exceeding 5 tons:—	£	s.	d.
For two hours' occupation or under - - -	0	7	0
Over two hours and not exceeding four hours - -	0	14	0
And 3s. 6d. per hour for each additional hour.			
Cranes of lifting capacity over 5 tons and not exceeding 15 tons:—			
For two hours' occupation or under - - -	0	10	6
Over two hours and not exceeding four hours - -	1	1	0
And 5s. 3d. per hour for each additional hour.			
Cranes of lifting capacity over 15 tons and not exceeding 25 tons:—			
For two hours' occupation or under - - -	1	1	0
Over two hours and not exceeding four hours - -	2	2	0
And 10s. 6d. per hour for each additional hour.			
Cranes of lifting capacity over 25 tons:—			
For two hours' occupation or under - - -	2	2	0
Over two hours and not exceeding four hours - -	4	4	0
And 21s. per hour for each additional hour.			

TABLE III.

Loading bricks coke pig-iron or ballast per ton - - -	0	0	2
Loading or discharging manufactured iron or steel per ton -	0	0	2
Loading or discharging iron or steel pipes per ton - -	0	0	6
Lifting timber from water to quay or truck or vice versa per 40 cubic feet - - - - -	0	0	6
Loading coals for steamers' use per ton - - - - -	0	0	2
Loading coals as cargo per ton - - - - -	0	0	2
Discharging iron ore pig-iron or limestone per ton - -	0	0	2
Discharging esparto per ton - - - - -	0	0	2
Discharging seeds or grain per ton - - - - -	0	0	2

Dues on minerals shipped by these cranes must be paid before the ships obtain clearance at the Customs and parties wishing the use of the cranes must pay a deposit of 1l. when entering the ship's

A.D. 1913. name in the crane book the same to be forfeited if the ship fails to load after being booked. No booking to be valid unless the fee is paid at entry.

HAND CRANES.

TABLE IV.—MISCELLANEOUS RATES FOR HAND-WROUGHT CRANES.

	£	s.	d.
All timber per 40 cubic feet - - - - -	0	0	2
Stones per ton - - - - -	0	0	3
Iron per ton - - - - -	0	0	2
Hogsheads crates puncheons and tierces each - - - - -	0	0	2
Bales barrels bags or sacks each - - - - -	0	0	1
Any single lift not exceeding in weight 1 ton - - - - -	0	1	0
" 1 ton and not exceeding 2 tons - - - - -	0	2	0
" 2 " " 3 " - - - - -	0	3	0
" 3 " " 4 " - - - - -	0	4	0
" 4 " " 5 " - - - - -	0	5	0
" 5 " " 8 " - - - - -	0	8	0

The charge in no instance for a single lift to be less than one shilling.

An extra charge of 6*d.* per hour will be made when the services of a man superintending the working of any of these cranes are required.

When there are two lifts of the same article one-half more dues under this table to be paid and if any of the cranes under this table be used for a day the charge shall not be less than seven shillings and sixpence per day.

Unenumerated articles to be charged in proportion to the scale in this branch.

All dues to be paid or a deposit thereof made before a crane has been used.

In cases where the rates in the foregoing tables are not applicable the charge may be fixed by the collector.

NOTE.—In all cases of lifts by any of the cranes the harbour-master or the person in charge of the crane shall be the judge as to the weight that the crane may bear.

SCHEDULE I.

RATES FOR USE OF GOODS SHEDS.

For each ton of 40 cubic feet or for each ton of 20 hundredweight which shall remain in any shed on the quays of the harbour or docks for a longer time than forty-eight hours the sum of threepence sterling

per day for each day during which the said goods shall remain after the first forty-eight hours but this payment shall not confer right to continue the occupation of a shed or any part thereof after such forty-eight hours and all goods must be removed from the sheds within twenty-four hours after notice has been given to that effect by the Trustees or their superintendent or other officers and failing their being so removed the Trustees or their officers shall be entitled to remove the same and store them where they think proper at the risk and expense of the owners or consignees or in the option of the Trustees they may charge and the owners or consignees shall pay one shilling per ton per day for any goods remaining unremoved after the expiry of such twenty-four hours.

A.D. 1913.

SCHEDULE J.

FORM OF DECLARATION.

To be made before a sheriff or justice of the peace by some credible person in all cases where by the death bankruptcy or insolvency of a proprietor or by the marriage of a female proprietor bonds or other securities or vouchers of debt pass from one party to another in any other way than by a regular transfer.

I¹
do solemnly and sincerely declare that²
was the registered holder of the for £³
No.⁴ made by the Trustees of the port and harbours
of Greenock.

That the said
on the day of
and the said has been transmitted
and now belongs to⁵
by and in virtue of⁶

And I make this solemn declaration conscientiously believing the same to be true and in virtue of the provisions of the Statutory Declarations Act 1835.

This declaration made by the
said at
 in the
county of day of
this before me.

¹ Insert the full name description and residence of the party making this declaration.

² Insert full name description and residence of the party.

³ State amount of security.

⁴ State number of security if it is numbered.

⁵ Name of executor or trustee or other party.

⁶ Narrate the deed and give the dates thereof.

A.D. 1913.

SCHEDULE K.

FORM OF DISCHARGE.

Received from the Trustees of the port and harbours of Greenock by the hands of their treasurer the sum of _____ pounds being the principal sum contained in the within _____ (all interest due thereon having been previously paid) and the said _____ is now delivered up as paid In witness whereof [*here insert testing clause according to the law of Scotland*].

SCHEDULE L.

FORM A.

FORM OF STOCK CERTIFICATE.

GREENOCK HARBOUR.

Number

£

This is to certify that A.B. of (design him) is the proprietor of _____ pounds of Greenock Harbour A Debenture Stock [or Greenock Harbour B Preferred Debenture Stock or Greenock Harbour B Deferred Debenture Stock as the case may be] issued under the powers of the Greenock Port and Harbours Consolidation Act 1913 and it is further certified that this amount is not in excess of the borrowing powers of the trust.

Given under the common seal and signed by three of the Trustees of the port and harbours of Greenock this _____ day of

19

L.S.

Trustee.

Trustee.

Trustee.

Clerk.

Treasurer.

FORM B.

FORM OF TRANSFER.

I A.B. of (design him)
sum of _____
him)

in consideration of the
pounds paid to me by C.D. of (design
do hereby transfer to the said C.D. his

executors administrators and assignees the sum of A.D. 1913.
Greenock Harbour A Debenture Stock [or Greenock
Harbour B Preferred Debenture Stock or Greenock Harbour B Deferred
Debenture Stock as the case may be] standing in my name in the
register of such stock and all interest now due and to become due
thereon.

In witness whereof &c.

SCHEDULE M.

FEES.

	£	s.	d.
On original issue of stock certificate - - -	0	2	6
On any new stock certificate - - -	0	2	6
On transfer including certificate - - -	0	5	0

SCHEDULE N.

REGULATIONS FOR GRAVING DOCKS.

1. Every vessel intended for the docks shall be entered in the dock admission book and the person making the entry shall pay for each vessel twenty shillings at the time of making the entry for the vessel so entered otherwise the vessel to be considered as not entered No vessel shall be entered unless she shall at the time be within the Cloch or have left a port in the United Kingdom for Greenock.

2. No vessel shall be entered in the said dock admission book until an application for admission to the docks is made in a form to be approved and furnished by the Trustees and lodged at the harbour-master's office which application shall be signed by the master agent or one or more of the owners of the vessel or by the ship carpenter or other person who has been employed to repair her and shall state generally the nature and extent of the work intended to be done upon the vessel while in dock and the estimated time she will require to be therein the vessel so booked shall in the general case be entitled to her turn of docking in the rotation of booking but the harbour-master shall have the entire control of sending the vessel booked to such dock as he may think expedient and the Trustees shall have power if they shall think it necessary to remove the vessel from the dock at the expense of the owners of the said vessel

A.D. 1913. at the expiry of the time stated in the application or as soon as it is discovered that work of the nature specified in Regulation 3 is about to be begun or is being executed.

3. No vessel which is to be lengthened or to undergo other extensive repairs requiring the use of the dock for a longer period than three months shall be entitled to have such operations performed on her in any of the docks or to be admitted into the same or entered in the said dock admission book unless permission be granted by two-thirds at least of the Trustees present at a special meeting called for that purpose.

4. Vessels duly entered shall take their right or turn of going into the dock according to the order of the dates of their respective entries and if any vessel fail to keep her turn the next in order upon the books and if ordered by the harbour-master so to do shall take her place and so on progressively and every vessel so failing whether first or progressively shall forfeit her entry money and be considered as unentered in the dock admission book. Nothing herein shall prevent a second application for entry being made either before or after such failure.

5. No exchange of turns shall be permitted unless the consent in writing of the owners consignees agents or others having charge of the vessels entered for the dock at the time be previously obtained and delivered to the harbour-master.

6. The gates of the docks shall at all times be liable to be opened for the admission or exit of any vessel or vessels provided they can be so opened without injury to the vessel or vessels already within of which the harbour-master shall be the judge in the first instance but his judgment shall be subject to be appealed or complained against in manner hereafter provided for and if at any time the gates cannot be so opened by reason of such obstacle the vessel or vessels already within and occasioning the obstacle shall as soon as possible after due intimation has been given in writing by the harbour-master be made ready temporarily or otherwise for the opening of the gate and failing compliance with such intimation shall be chargeable with double dock dues from the time that such further vessel or vessels were prevented from entering or from going out.

7. If at any time there shall not be a sufficiency of water to permit the vessel next in order upon the books to enter the dock the vessel next succeeding and capable of entering and if ordered by the harbour-master so to do shall have the right or turn but always on condition that the harbour-master shall be entitled to remove her from the dock as soon as there shall be a sufficiency of water to allow the larger vessel so disappointed to enter.

8. If when two or more vessels have been admitted into the dock there shall not remain a space sufficiently large for receiving the next in order on the dock admission book but sufficient for the accommodation of a vessel or vessels of smaller dimensions the harbour-master shall have right to pass over the intermediate vessels appearing on his books and give admission to the first entered of such smaller vessels. But it is hereby specially provided that vessels prevented docking from either of the causes stated in Regulations 7 and 8 shall not have forfeited their right of turn and they shall be entitled to be docked first in turn when there is sufficient water or length as the case may be. A.D. 1913.

9. Outward-bound vessels which have paid dues at and cleared from the port and harbours and have put back from sea damaged shall have right to the first turn of any of the docks in preference to all other vessels.

10. Lower blocks horizontal shores stove for steaming plank and two tar-kettles with furnaces shall be found by the Trustees. All other utensils and implements of whatever description must be found by the shipowner or carpenter or other parties executing repairs on the vessel.

11. The gate and sluices shall on no account or occasion be opened or shut but by order and in the presence of the harbour-master or of a qualified deputy or assistant.

12. All vessels entering the dock shall be so trimmed as to draw the least possible depth of water and on no pretence whatever with any of their anchors over their bows.

13. Subject to the present regulations and the right of appeal or complaint after mentioned the harbour-master shall have the sole power of placing or berthing the vessels that enter the dock and of shifting them while therein.

14. No fire at any time nor candle or other light after working hours shall on any pretence whatever be permitted to be used on board of any vessel while in the dock unless under special permission in writing from the harbour-master and then only under such safeguards and conditions as he may prescribe.

15. All damage done to the blocks shores stove tar-kettles or to any appurtenance or part whatever of the dock itself shall be made good by the owner master consignee or agent of the vessel by which the damage shall have been occasioned the amount to be fixed by the harbour-master under the right of appeal mentioned in Regulation 22.

16. The dock dues leviable by the Trustees shall not exceed those specified in Schedule G to this Act annexed. British vessels shall be charged on their gross registered tonnage which shall be ascertained

A.D. 1913 — by the ship's certificate of registry Foreign vessels shall be charged conformably to the gross tonnage which they shall be found to measure by application of the rules appointed by law for ascertaining the registered tonnage of British vessels.

17. The charge for pumping the dock shall be according to the table in Schedule G to this Act annexed and there shall be a further reasonable charge for cleaning the dock and removing the rubbish occasioned by docking.

18. If any vessel after being repaired be prevented from leaving the dock by reason of insufficiency of water or by the intervention of any other vessel or vessels between her and the gate she shall not be chargeable with dock dues from and after the time of her being so detained but intervening vessels shall at all times be obliged on getting twelve hours' notice to remove and make way for the outgoing vessels unless the particular stage of their repair render such removal impracticable or prejudicial of which the harbour-master shall be the judge in the first instance but his judgment shall be subject to be appealed or complained against as hereafter provided for and if the intervening vessel or vessels cannot be removed from any cause other than the insufficiency of water and the detention of the out-going vessel be thus occasioned such intervening vessel or vessels shall during the period of such detention be chargeable with the dock dues ceasing to be exigible on the vessel so detained the dock dues in the event of more than one vessel intervening and occasioning the detention to be apportioned according to the tonnage.

19. The dock dues together with such of the charges mentioned in the preceding articles as shall have been incurred by any vessel shall be paid or a sufficient deposit made to the collector and the receipt for the same exhibited to the harbour-master before the vessel leaves the dock and the entry money shall be allowed in part payment.

20. Notwithstanding anything in the foregoing rules to the contrary the harbour-master is hereby declared generally and besides the special authority vested in him by these regulations to have full power to regulate and conduct all matters appertaining to the order and good government of the docks including the power of removal of vessels therefrom twenty-four hours' notice of the intention to remove the vessel being given to the master or other person in charge so that he may have an opportunity of appealing against the harbour-master's order.

21. In case of any dispute or difference in opinion between the harbour-master and the owner master consignee or agent of any vessel or other person or persons employed in repairing such vessel in the

dock in regard to the construction and true meaning of any part of the premises the matter in dispute shall be referred to the provost and magistrates of the burgh who or any one or more of them sitting in open court shall have and they are hereby invested with power to hear and determine the matters in dispute and their or his decision shall be final. A.D. 1913.

22. In case the owner master consignee agent or other person or persons aforesaid shall feel aggrieved by any of the orders decisions or actings of the harbour-master or his deputy or assistant in relation to the docks or to any vessel which may be entered for admission thereto or may be or may have been in the docks he shall be entitled to appeal or complain in writing against such orders decisions or actings to the said provost and magistrates who or any one or more of them sitting in open court shall have and they are hereby invested with power to hear and determine the appeal or complaint and to make such order in the premises as to them shall seem just which order and determination shall be binding on all parties concerned in the said appeal or complaint.

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